ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO:
NAME: Brendan Ngehsi Newanforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442 FAX NO.:
E-MAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Pro Per

*FOR COURT USE ONLY*

**SUPERIOR COURT OF CALIFORNIA, COUNTY OF** ALAMEDA
STREET ADDRESS: 1225 Fallon Street
MAILING ADDRESS: 1225 Fallon Street
CITY AND ZIP CODE: Oakland, CA 94612
BRANCH NAME: Rene C. Davidson Courthouse

Plaintiff/Petitioner: Brendan Ngehsi Newanforbi
Defendant/Respondent: Randstad US, LLC, et al.

**REQUEST FOR (Application)** ☐ **Entry of Default** ☐ **Clerk's Judgment** ☑ **Court Judgment**

CASE NUMBER: 26CV199902

**Not for use in actions under the Fair Debt Buying Practices Act (Civ. Code, § 1788.50 et seq.)**; (see form CIV-105)

1. TO THE CLERK: On the complaint or cross-complaint filed
   a. on *(date):* 07/20/2026
   b. by *(name):* Brendan Ngehsi Newanforbi
   c. ☐ Enter default of defendant *(names):*
      RANDSTAD US, LLC, a Delaware limited liability company
   d. ☑ I request a court judgment under Code of Civil Procedure sections 585(b), 585(c), 989, etc., against defendant *(names):*
      RANDSTAD US, LLC, a Delaware limited liability company
      *(Testimony required. Apply to the clerk for a hearing date, unless the court will enter a judgment on an affidavit under Code Civ. Proc., § 585(d).)*
   e. ☐ Enter clerk's judgment
      (1) ☐ for restitution of the premises only and issue a writ of execution on the judgment. Code of Civil Procedure section 1174(c) does not apply. (Code Civ. Proc., § 1169.)
         ☐ Include in the judgment all tenants, subtenants, named claimants, and other occupants of the premises. The *Prejudgment Claim of Right to Possession* was served in compliance with Code of Civil Procedure section 415.46.
      (2) ☐ under Code of Civil Procedure section 585(a). *(Complete the declaration under Code Civ. Proc., § 585.5 on the reverse (item 5).)*
      (3) ☑ for default previously entered on *(date):* 09/16/2026

2. **Judgment to be entered.**

| | Amount | Credits acknowledged | Balance |
|---|---|---|---|
| a. Demand of complaint | $ 45,000.00 | $ 0.00 | $ 45,000.00 |
| b. Statement of damages* | | | |
| (1) Special | $ | $ | $ |
| (2) General | $ | $ | $ |
| c. Interest | $ 543.70 | $ 0.00 | $ 543.70 |
| d. Costs *(see reverse)* | $ 0.00 | $ 0.00 | $ 0.00 |
| e. Attorney fees | $ 0.00 | $ 0.00 | $ 0.00 |
| f. **TOTALS** | $ 45,543.70 | $ 0.00 | $ 45,543.70 |

   g. **Daily damages** were demanded in complaint at the rate of: $ per day beginning *(date):*

*(* Personal injury or wrongful death actions; Code Civ. Proc., § 425.11.)*

3. ☐ *(Check if filed in an unlawful detainer case.)* **Legal document assistant or unlawful detainer assistant** information is on the reverse *(complete item 4).*

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME)

(SIGNATURE OF PLAINTIFF OR ATTORNEY FOR PLAINTIFF)

***FOR COURT USE ONLY***
(1) ☐ Default entered as requested on *(date):*
(2) ☐ Default NOT entered as requested *(state reason):*
Clerk, by _____, Deputy



Form Adopted for Mandatory Use
Judicial Council of California
CIV-100 [Rev. January 1, 2023]

**REQUEST FOR ENTRY OF DEFAULT**
**(Application to Enter Default)**

Code of Civil Procedure, §§ 585–587, 1169
*www.courts.ca.gov*

| Plaintiff/Petitioner: Brendan Ngehsi Newanforbi<br>Defendant/Respondent: Randstad US, LLC, et al. | CASE NUMBER:<br>26CV199902 |
|---|---|

4. **Legal document assistant or unlawful detainer assistant (Bus. & Prof. Code, § 6400 et seq.).** A legal document assistant or unlawful detainer assistant ☐ did ☑ did **not** for compensation give advice or assistance with this form. If declarant has received **any** help or advice for pay from a legal document assistant or unlawful detainer assistant, state:

   a. Assistant's name:
   b. Street address, city, and zip code:
   c. Telephone no.:
   d. County of registration:
   e. Registration no.:
   f. Expires on *(date):*

5. ☑ **Declaration under Code Civ. Proc., § 585.5** *(for entry of default under Code Civ. Proc., § 585(a)).* This action

   a. ☐ is ☑ is not on a contract or installment sale for goods or services subject to Civ. Code, § 1801 et seq. (Unruh Act).
   b. ☐ is ☑ is not on a conditional sales contract subject to Civ. Code, § 2981 et seq. (Rees-Levering Motor Vehicle Sales and Finance Act).
   c. ☐ is ☑ is not on an obligation for goods, services, loans, or extensions of credit subject to Code Civ. Proc., § 395(b).

6. **Declaration of mailing (Code Civ. Proc., § 587).** A copy of this *Request for Entry of Default* was

   a. ☐ **not mailed** to the following defendants, whose addresses are unknown to plaintiff or plaintiff's attorney *(names):*

   b. ☑ **mailed** first-class, postage prepaid, in a sealed envelope addressed to each defendant's attorney of record or, if none, to each defendant's last known address as follows:

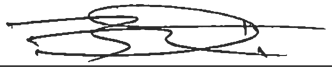
      (1) Mailed on *(date):* September 16, 2026

      (2) To *(specify names and addresses shown on the envelopes):*
      Chadwick L. Williams, Esq., Kabat Chapman & Ozmer LLP
      1150 Spring Street NW, Suite 800, Atlanta, GA 30309
      Randstad US, LLC, c/o CSC - Lawyers Incorporating Service
      2710 Gateway Oaks Drive, Suite 150N, Sacramento, CA 95833

I declare under penalty of perjury under the laws of the State of California that the foregoing items 4, 5, and 6 are true and correct.

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME)

▶ 
(SIGNATURE OF DECLARANT)

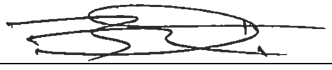
7. **Memorandum of costs** *(required if money judgment requested).* Costs and disbursements are as follows (Code Civ. Proc., § 1033.5):

   a. Clerk's filing fees . . . . . $
   b. Process server's fees . . . . . $
   c. Other *(specify):* $
   d. $
   e. **TOTAL** . . . . . $ _____
   f. ☑ Costs and disbursements are waived.
   g. I am the attorney, agent, or party who claims these costs. To the best of my knowledge and belief this memorandum of costs is correct and these costs were necessarily incurred in this case.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 7 is true and correct.

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME)

▶ 
(SIGNATURE OF DECLARANT)

| Plaintiff/Petitioner: Brendan Ngehsi Newanforbi<br>Defendant/Respondent: Randstad US, LLC, et al. | CASE NUMBER:<br>26CV199902 |
|---|---|

8. **Declaration of nonmilitary status** *(required for a judgment).*
No defendant/respondent named in item 1c is in the military service of the United States as defined by either the Servicemembers Civil Relief Act (see 50 U.S.C. § 3911(2)) or California Military and Veterans Code sections 400 and 402(f).

I know that no defendant/respondent named in item 1c is in the U.S. military service because *(check all that apply)*:

a. ☐ the search results that I received from *https://scra.dmdc.osd.mil/* say the defendant/respondent is not in the U.S. military service.
b. ☐ I am in regular communication with the defendant/respondent and know that they are not in the U.S. military service.
c. ☐ I recently contacted the defendant/respondent, and they told me that they are not in the U.S. military service.
d. ☐ I know that the defendant/respondent was discharged from U.S. military service on or about *(date):*
e. ☑ the defendant/respondent is not eligible to serve in the U.S. military because they are:
   ☐ incarcerated ☑ a business entity
f. ☐ other *(specify):*

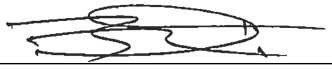
**Note**

- U.S. military status can be checked online at *https://scra.dmdc.osd.mil/*.
- If the defendant/respondent is in the military service, or their military status is unknown, the defendant/respondent is entitled to certain rights and protections under federal and state law before a default judgment can be entered.
- For more information, see *https://selfhelp.courts.ca.gov/military-defaults*.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 8 is true and correct.

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME)


(SIGNATURE OF DECLARANT)

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.:
NAME: Brendan Ngehsi Newanforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442 FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Pro Per

*FOR COURT USE ONLY*

**SUPERIOR COURT OF CALIFORNIA, COUNTY OF** ALAMEDA
STREET ADDRESS: 1225 Fallon Street
MAILING ADDRESS: 1225 Fallon Street
CITY AND ZIP CODE: Oakland, CA 94612
BRANCH NAME: Rene C. Davidson Courthouse

PLAINTIFF: Brendan Ngehsi Newanforbi
DEFENDANT: Randstad US, LLC, et al.

**JUDGMENT**

☐ **By Clerk** ☑ **By Default** ☐ **After Court Trial**
☑ **By Court** ☐ **On Stipulation** ☐ **Defendant Did Not Appear at Trial**

CASE NUMBER: 26CV199902

## JUDGMENT

1. ☑ **BY DEFAULT**
   a. Defendant was properly served with a copy of the summons and complaint.
   b. Defendant failed to answer the complaint or appear and defend the action within the time allowed by law.
   c. Defendant's default was entered by the clerk upon plaintiff's application.
   d. ☐ **Clerk's Judgment** (Code Civ. Proc., § 585(a)). Defendant was sued only on a contract or judgment of a court of this state for the recovery of money.
   e. ☑ **Court Judgment** (Code Civ. Proc., § 585(b)). The court considered
      (1) ☐ plaintiff's testimony and other evidence.
      (2) ☑ plaintiff's written declaration (Code Civ. Proc., § 585(d)).
2. ☐ **ON STIPULATION**
   a. Plaintiff and defendant agreed (stipulated) that a judgment be entered in this case. The court approved the stipulated judgment and
   b. ☐ the signed written stipulation was filed in the case.
   c. ☐ the stipulation was stated in open court ☐ the stipulation was stated on the record.
3. ☐ **AFTER COURT TRIAL.** The jury was waived. The court considered the evidence.
   a. The case was tried on *(date and time):*
      before *(name of judicial officer):*
   b. Appearances by
      ☐ plaintiff *(name each):*
      (1)
      (2)
      ☐ Continued on Attachment 3b.
      ☐ plaintiff's attorney *(name each):*
      (1)
      (2)
      ☐ defendant *(name each):*
      (1)
      (2)
      ☐ Continued on Attachment 3b.
      ☐ defendant 's attorney *(name each):*
      (1)
      (2)
   c. ☐ Defendant did not appear at trial. Defendant was properly served with notice of trial.
   d. ☐ A statement of decision (Code Civ. Proc., § 632) ☐ was not ☐ was requested.

| PLAINTIFF: Brendan Ngehsi Newanforbi<br>DEFENDANT: Randstad US, LLC, et al. | CASE NUMBER:<br>26CV199902 |
|---|---|

**JUDGMENT IS ENTERED BY ☑ THE COURT ☐ THE CLERK AS FOLLOWS:**

4. ☐ **Stipulated Judgment.** Judgment is entered according to the stipulation of the parties.
5. **Parties.** Judgment is
   a. ☑ for plaintiff *(name each):*
   Brendan Ngehsi Newanforbi

   and against defendant *(names):*
   RANDSTAD US, LLC, a Delaware limited liability company

   ☐ Continued on Attachment 5a.

   b. ☐ for defendant *(name each):*

   c. ☐ for cross-complainant *(name each):*

   and against cross-defendant *(name each):*

   ☐ Continued on Attachment 5c.

   d. ☐ for cross-defendant *(name each):*

6. **Amount.**
   a. ☑ Defendant named in item 5a above must pay plaintiff on the complaint

| | |
|---|---|
| (1) ☑ Damages | $ 45,000.00 |
| (2) ☑ Prejudgment interest at the annual rate of 7 % | $ 543.70 |
| (3) ☐ Attorney fees | $ |
| (4) ☑ Costs | $ 0.00 |
| (5) ☐ Other *(specify):* | $ |
| (6) **TOTAL** | $ 45,543.70 |

   b. ☐ Plaintiff to receive nothing from defendant named in item 5b.
   ☐ Defendant named in item 5b to recover costs: $
   ☐ and attorney fees: $

   c. ☐ Cross-defendant named in item 5c above must pay cross-complainant on the cross-complaint

| | |
|---|---|
| (1) ☐ Damages | $ |
| (2) ☐ Prejudgment interest at the annual rate of % | $ |
| (3) ☐ Attorney fees | $ |
| (4) ☐ Costs | $ |
| (5) ☐ Other *(specify):* | $ |
| (6) **TOTAL** | $ |

   d. ☐ Cross-complainant to receive nothing from cross-defendant named in item 5d.
   ☐ Cross-defendant named in item 5d to recover costs: $
   ☐ and attorney fees: $

7. ☐ Judgment debtor is a natural person, and as provided in the relevant statute,
   $ of this judgment is on a claim related to medical expenses (Code Civ. Proc., §§ 683.110, 685.010)
   $ of this judgment is on a claim related to personal debt (Code Civ. Proc., §§ 683.110, 685.010), which includes: $ concerning consumer debt (Code Civ. Proc., § 708.111).
8. ☑ Other *(specify):*
   Several judgment (CCP 579) as to Randstad US, LLC only. RK Logistics remains. Does 1-20 dismissed without prejudice. Default entered 09/16/2026. Punitive damages noticed under CCP 425.115; none requested on this judgment. Costs waived

Date: ☐ _____
JUDICIAL OFFICER

Date: ☐ Clerk, by _____ , Deputy

(SEAL)

**CLERK'S CERTIFICATE** *(optional)*
I certify that this is a true copy of the original judgment on file in the court.

Date:

Clerk, by _____ , Deputy



**For your protection and privacy, please press the Clear This Form button after you have printed the form.**

Print this form Save this form Clear this form

ATTORNEY OR PARTY WITHOUT ATTORNEY
STATE BAR NUMBER:
NAME: Brendan Ngehsi Newanforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton
STATE: CA
ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442
FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR *(name)*: Plaintiff, In Pro Per

***FOR COURT USE ONLY***

**SUPERIOR COURT OF CALIFORNIA, COUNTY OF** ALAMEDA
STREET ADDRESS: 1225 Fallon Street
MAILING ADDRESS: 1225 Fallon Street
CITY AND ZIP CODE: Oakland, CA 94612
BRANCH NAME: Rene C. Davidson Courthouse

PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi
DEFENDANT/RESPONDENT: Randstad US, LLC, et al.

# REQUEST FOR DISMISSAL

CASE NUMBER: 26CV199902

**A conformed copy will not be returned by the clerk unless a method of return is provided with the document.**

**This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)**

1. TO THE CLERK: Please **dismiss** this action as follows:
   a. (1) ☐ With prejudice (2) ☑ Without prejudice (3) ☐ Without prejudice and with the court retaining jurisdiction (Code Civ. Proc., § 664.6)
   b. (1) ☑ Complaint (2) ☐ Petition
      (3) ☐ Cross-complaint filed on *(date):* by *(name):*
      (4) ☐ Cross-complaint filed on *(date):* by *(name):*
      (5) ☐ Entire action of all parties and all causes of action
      (6) ☑ Other *(specify)*:* Does 1 through 20, inclusive, only — not Randstad US, LLC; not The RK Logistics Group, Inc.
2. *(Complete in all cases except family law cases.)*
   The court ☑ did ☐ did not waive court fees and costs for a party in this case. *(This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed.)*

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME OF ☐ ATTORNEY ☑ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

Attorney or party without attorney for
☑ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

* If dismissal requested is of specified parties only, of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed

3. TO THE CLERK: Consent to the above dismissal is hereby given.†
Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

Attorney or party without attorney for
☐ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

† If item 1a(3) is checked, all parties must sign.
If a cross-complaint—or *Response—Marriage/Domestic Partnership* (form FL-120) seeking affirmative relief—is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581(i) or (j).

☐ Check here and use form MC-025 or a separate page for additional signatures. Include date, printed name, and party information.

4. ☐ Dismissal entered as requested on *(date):*
5. ☐ Dismissal entered on *(date):* as to only *(name):*
6. ☐ Dismissal **not entered** as requested for the following reasons *(specify):*

7. a. ☐ Attorney or party without attorney notified on *(date):*
   b. ☐ Attorney or party without attorney not notified. Filing party failed to provide
      ☐ a copy to be conformed ☐ means to return conformed copy

Date: Clerk, by , Deputy



Form Adopted for Mandatory Use
Judicial Council of California
CIV-110 [Rev. January 1, 2025]



Code of Civil Procedure, § 581 et seq.;
Government Code, § 68637(c); Cal. Rules of Court, rule 3.1390
www.courts.ca.gov

| PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi<br>DEFENDANT/RESPONDENT: Randstad US, LLC, et al. | CASE NUMBER:<br>26CV199902 |
|---|---|

**COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS**

If a party whose court fees and costs were initially waived has recovered or will recover $10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

## Declaration Concerning Waived Court Fees

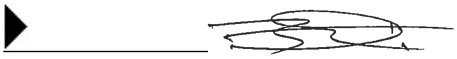
1. The court waived court fees and costs in this action for *(name):* Brendan Ngehsi Newanforbi
2. The person named in item 1 is *(check one below)*
   a. ☐ not recovering anything of value by this action.
   b. ☐ recovering less than $10,000 in value by this action.
   c. ☑ recovering $10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. All court fees and court costs that were waived in this action have been paid to the court *(check one):* ☐ Yes ☑ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☑ PARTY MAKING DECLARATION)



(SIGNATURE)



For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form Save this form Clear this form

**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**COUNTY OF ALAMEDA**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**RANDSTAD US, LLC, a Delaware limited liability company; THE RK LOGISTICS GROUP, INC., a California corporation; and DOES 1 through 20, inclusive,**<br><br>Defendants. | Case No. 26CV199902<br><br>**DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF REQUEST FOR DEFAULT JUDGMENT BY COURT AS TO RANDSTAD US, LLC**<br>(Cal. Rules of Court, rule 3.1800; Code Civ. Proc. sections 579, 585(b), 585(d))<br><br>Assigned: Hon. Thomas Weathers, Dept. 20<br>CMC: December 17, 2026<br>[Date Executed: September 16, 2026] |

# DECLARATION OF BRENDAN NGEHSI NEWANFORBI

## IN SUPPORT OF REQUEST FOR DEFAULT JUDGMENT BY COURT

**(Cal. Rules of Court, rule 3.1800; Code Civ. Proc. sections 579, 585(b), 585(d))**

I, **BRENDAN NGEHSI NEWANFORBI**, declare:

## I. PRELIMINARY STATEMENT

1. I am the Plaintiff in the above-entitled action and am over eighteen years of age. The

matters set forth herein are within my personal knowledge unless stated on information and belief, and if called as a witness I could and would competently testify to them. I submit this Declaration in support of my Request for Default Judgment by the Court (Judicial Council Form CIV-100) against Defendant **RANDSTAD US, LLC**, a Delaware limited liability company ("Randstad"), pursuant to Code of Civil Procedure section 585, subdivisions (b) and (d), and California Rules of Court, rule 3.1800.

2. This Declaration is submitted with: (a) Plaintiff's Request for Court Judgment (Form CIV-100), including the declaration of nonmilitary status at item 8; (b) Plaintiff's [Proposed] Judgment (Form JUD-100); (c) Plaintiff's Request for Dismissal of Does 1 through 20 without prejudice (Form CIV-110); and (d) the exhibits listed in the Index below. Default as to Randstad was already entered on September 16, 2026. This paper asks for a court judgment on that default. It does not ask the clerk to enter default again, and it does not seek judgment against The RK Logistics Group, Inc. ("RK Logistics").

3. The amounts requested are the conservative statutory figures this record can support on a default prove-up, not the Greenup / section 425.115 ceiling. They total $45,543.70, computed as follows: Civil Code section 1786.50 statutory damages of $10,000.00; Penal Code section 290.46 additional amount of $10,000.00 (one times the ICRAA figure, treated as the actual-damages stand-in); subdivision civil penalty of $25,000.00; and prejudgment interest of $543.70 at 7 percent. Punitive damages noticed under section 425.115 at $500,000.00 are recited so the cap is preserved; I request $0.00 in punitive damages on this packet. Costs are waived. Attorney's fees are not requested. General damages and lost wages pleaded "according to proof" are not requested.

## II. PROCEDURAL POSTURE

4. The operative pleading is the Verified Complaint for Damages filed July 20, 2026

(Exhibit A). It asserts six causes of action against Randstad and RK Logistics: (1) violation of Penal Code section 290.46, subdivision (j)(2)(E); (2) wrongful termination in violation of public policy; (3) violation of the Investigative Consumer Reporting Agencies Act (Civ. Code section 1786 et seq.); (4) invasion of privacy; (5) negligence per se; and (6) unlawful business practices (Bus. & Prof. Code section 17200 et seq.).

5. The summons and complaint were personally served on Randstad on July 30, 2026, at its registered agent CSC - Lawyers Incorporating Service, by Sacramento County Sheriff / Josh Swindell (Levying Officer File No. 2026026857). The POS-010 was accepted for filing August 7, 2026. A true copy is Exhibit B.

6. On August 7, 2026, I executed an Amended Notice of Amount of Punitive Damages Sought under Code of Civil Procedure section 425.115, stating that I reserve the right to seek $500,000.00 in punitive damages against Randstad. That notice was personally served on Randstad on August 21, 2026, at CSC, by Sacramento County Sheriff / F. Conley (Levying Officer File No. 2026028894). The POS-040 was filed September 9, 2026. True copies are Exhibits D and E. Default had not been entered when that notice was served. Code of Civil Procedure section 425.115 therefore supplies the noticed punitive ceiling on this default. I recite that ceiling so it is preserved. I do not ask the Court to write that figure on the judgment. No Code of Civil Procedure section 425.11 statement of damages was served, and I do not request personal-injury general damages on this prove-up.

7. Randstad's time to respond was extended by party agreement through and including September 15, 2026. That was the one 15-day extension under California Rules of Court, rule 3.110(d), without a court order. Randstad did not answer, demur, move to strike, or otherwise appear. On September 16, 2026, I filed a CIV-100 requesting entry of default only (item 1c). The clerk, Deputy S. Pesko, ENTERED default as to Randstad the same day. A true copy of the FILE-stamped CIV-100 is Exhibit C. No clerk's judgment and no court judgment has been

entered. This Request asks for a court judgment for default previously entered on September 16, 2026.

8. I apply for a several judgment against Randstad alone under Code of Civil Procedure section 579. RK Logistics remains a named defendant. A CIV-141 was served on September 14, 2026, on behalf of RK Logistics; I have not treated that paper as entered without a clerk stamp, and I am not requesting default or judgment against RK Logistics in this packet. A several judgment is proper because Randstad is the employer of record that ordered the background check and delivered the July 15, 2026 termination, the default is as to Randstad only, and the action can proceed against RK Logistics. Does 1 through 20 are dismissed without prejudice by the accompanying CIV-110. California Rules of Court, rule 3.1800(a)(7), is therefore satisfied.

9. Concurrently with this filing I am mailing copies of the CIV-100 application for judgment, first-class, postage prepaid, to Randstad's attorney of record, Chadwick L. Williams, Esq., Kabat Chapman & Ozmer LLP, 1150 Spring Street NW, Suite 800, Atlanta, GA 30309, and to Randstad US, LLC, c/o CSC - Lawyers Incorporating Service, 2710 Gateway Oaks Drive, Suite 150N, Sacramento, CA 95833, as declared on CIV-100 item 6 and required by Code of Civil Procedure section 587.

## III. BRIEF SUMMARY OF THE CASE

**(Cal. Rules of Court, rule 3.1800(a)(2))**

10. I applied on June 30, 2026, through Indeed, for a Class C Driver - Bobtail position listed by RK Logistics at its Newark, California facility. I held a valid California Class C license. On July 7, 2026, Randstad notified me that my employee status had changed to Rehired (Exhibit H). That same day Randstad caused InfoMart LLC to run a background investigation

(Order No. 15780719) billed to "RK LOGISTICS."

11. On July 13, 2026, InfoMart completed the report. Every criminal-court search returned No Record. The sole adverse item was the National Sex Offender Search result: "Subject is a registered Sex Offender in California." The overall status was "NEEDS APPROVAL, PER CLIENT CRITERIA." A true copy of the report is Exhibit F. InfoMart's Notice to Consumer for Employment Purposes of the same date is Exhibit G.

12. Penal Code section 290.46, subdivision (j)(2)(E), prohibits using information disclosed on the Megan's Law Internet website for purposes relating to employment. On July 15, 2026, Randstad terminated my employment. I had been rehired but had not commenced active paid shifts. By default, the well-pleaded allegations of the verified Complaint are admitted.

## IV. DAMAGES REQUESTED — WHAT THIS RECORD SUPPORTS

13. Code of Civil Procedure section 580 and Greenup v. Rodman (1986) 42 Cal.3d 822 limit a default judgment to the amount demanded in the complaint, and, for punitive damages, to the amount noticed under section 425.115 before default. That ceiling here is the numbered prayer plus $500,000.00. Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267 requires that a default prove-up still prove the dollars. I therefore ask only for the itemized statutory sums this file can walk the Court through on one page, and I do not ask the Court to enter the noticed punitive ceiling.

14. Prayer item 6 (third cause of action) seeks statutory damages of $10,000 per violation, or actual damages, whichever is greater, under Civil Code section 1786.50. I worked no paid shift between the July 7 rehire and the July 15 termination, so actual wage loss on this prove-up is $0.00. The greater figure is $10,000.00. I request $10,000.00 on the ICRAA count

for one qualifying use of the InfoMart investigative consumer report ordered July 7, 2026 (Order No. 15780719) and used in the July 15 termination. Randstad is the user that ordered the report.

15. Prayer item 3 (first cause of action) seeks an additional amount under Penal Code section 290.46, pleaded as subdivision (j)(5). The current code places that civil remedy at subdivision (j)(4)(A): actual damages, plus an additional amount of at least $250 and at most three times actual damages, plus fees, plus either exemplary damages or a civil penalty not exceeding $25,000. It is not "actuals or $25,000, whichever is greater." I treat the ICRAA $10,000.00 as the actual-damages stand-in and request one times that figure, $10,000.00, as the additional amount — not three times, and not the $250 floor. If the Court declines to treat the ICRAA statutory sum as Penal Code actuals, the additional amount is $250.00 and the rest of this Request is unchanged.

16. Prayer item 4 seeks exemplary damages or a civil penalty not exceeding $25,000 per violation under the same subdivision. I request the civil penalty of $25,000.00 as a statutory penalty. I do not also ask for open-ended Civil Code section 3294 punitive damages, and I do not stack a Penal Code exemplary award, on the same count.

17. Prayer items 1, 2, and 8 seek compensatory damages, general damages for emotional distress, and UCL restitution, each according to proof. I do not request those sums on this default. No section 425.11 statement was served (Schwab v. Rondel Homes, Inc. (1991) 53 Cal.3d 428). I earned no wages during the July 7-15 window. I do not load homelessness, parole transfer, or any other portfolio fact onto this eight-day rehire. Omitting those items keeps this Request inside numbered, documentable dollars.

18. Prayer items 5 and 7 seek punitive damages under Civil Code sections 3294 and 1786.50. Exhibit D noticed $500,000.00. Default admits the well-pleaded facts, not the amount

of damages. Asking that ceiling on an eight-day staffing rehire, with no paid shifts and no medical file tied to Randstad, would not survive Kim scrutiny. I request punitive damages of $0.00 on this packet.

19. Itemized principal therefore totals $45,000.00 ($10,000.00 + $10,000.00 + $25,000.00). Punitive damages requested are $0.00. The demand of the complaint on CIV-100 item 2a is $45,000.00.

## V. PREJUDGMENT INTEREST

20. Prayer item 11 seeks prejudgment interest. The statutory sums in paragraph 19 are certain within Civil Code section 3287, subdivision (a). No contract rate applies. The constitutional rate of seven percent per annum therefore governs. Cal. Const., art. XV, section 1. Interest runs from July 15, 2026 (the termination) through September 16, 2026. That is 63 days. Computation: $45,000.00 x 0.07 x 63/365 = $543.70. Interest is not requested on any punitive sum.

## VI. COSTS AND ATTORNEY'S FEES

21. Court fees were waived by FW-003 granted July 20, 2026 (Exhibit I). I waive recoverable costs of suit against Randstad on CIV-100 item 7f. No Memorandum of Costs is filed. I am informed that Government Code section 68637 may impose a lien or repayment of waived fees if I recover $10,000 or more; the accompanying CIV-110 so declares. That is an obligation to the court, not a cost taxed against Randstad in this judgment.

22. I appear in propria persona. I do not request attorney's fees on this prove-up.

## VII. INJUNCTIVE RELIEF

23. Prayer item 9 seeks injunctive relief. To permit judgment on declaration under Code of Civil Procedure section 585, subdivision (d), I do not request injunctive relief in this packet.

## VIII. NONMILITARY STATUS

24. Randstad US, LLC is a Delaware limited liability company and a business entity. It is not eligible to serve in the United States military. The declaration at CIV-100 item 8 so states.

## IX. REQUESTED JUDGMENT

25. I respectfully request that the Court enter default judgment on declaration in favor of Plaintiff Brendan Ngehsi Newanforbi and against Defendant Randstad US, LLC, a Delaware limited liability company, as follows:

a. Damages (itemized statutory): $45,000.00;

b. Prejudgment interest at 7 percent from July 15, 2026: $543.70;

c. Costs: $0.00 (waived);

d. Attorney's fees: $0.00 (not requested);

e. Punitive damages: $0.00 (section 425.115 cap of $500,000.00 noticed and preserved; not requested on this judgment);

f. TOTAL: $45,543.70.

26. The judgment should be several as to Randstad only, leaving the action pending against RK Logistics, with Does 1 through 20 dismissed without prejudice.

## X. INDEX OF EXHIBITS

Exhibit A. Verified Complaint for Damages (filed July 20, 2026), including the Prayer for Relief.

Exhibit B. POS-010 Proof of Service of Summons on Randstad US, LLC (personally served July 30, 2026, Levying Officer File No. 2026026857).

Exhibit C. CIV-100 Request for Entry of Default as to Randstad US, LLC, FILE-stamped September 16, 2026 (Deputy S. Pesko); default ENTERED the same day.

Exhibit D. Amended Notice of Amount of Punitive Damages Sought (CCP section 425.115) as to Randstad US, LLC ($500,000.00; executed August 7, 2026).

Exhibit E. POS-040 Proof of Service of the Amended CCP section 425.115 Notice on Randstad US, LLC (personally served August 21, 2026; filed September 9, 2026; Levying Officer File No. 2026028894).

Exhibit F. InfoMart background-check report, Order No. 15780719 (Billing Code RK LOGISTICS; sole adverse item the California sex-offender registry).

Exhibit G. InfoMart Notice to Consumer for Employment Purposes (July 13, 2026).

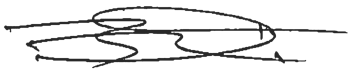
Exhibit H. Randstad notification that Plaintiff's employee status changed to Rehired (July 7, 2026).

Exhibit I. FW-003 Order on Court Fee Waiver, granted July 20, 2026.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on September 16, 2026,

at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

# EXHIBIT A

Verified Complaint for Damages (filed July 20, 2026)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdla@gmail.com

**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**COUNTY OF ALAMEDA**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**RANDSTAD US, LLC, a Delaware limited liability company; THE RK LOGISTICS GROUP, INC., a California corporation; and DOES 1 through 20, inclusive,**<br><br>Defendants. | Case No. _____<br><br>**COMPLAINT FOR DAMAGES**<br><br>(1) Violation of Penal Code § 290.46(j)(2)(E);<br>(2) Wrongful Termination in Violation of Public Policy;<br>(3) Violation of ICRAA (Civ. Code § 1786 et seq.);<br>(4) Invasion of Privacy (Cal. Const. Art. I, § 1);<br>(5) Negligence Per Se (Evid. Code § 669);<br>(6) Unfair Business Practices (Bus. & Prof. Code § 17200)<br><br>*[Unlimited Civil]*<br>*[Jury Trial Demanded]* |

## COMPLAINT FOR DAMAGES

Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in pro per, alleges as follows:

## PARTIES

1. Plaintiff BRENDAN NGEHSI NEWANFORBI (hereinafter "Plaintiff") is, and at all times relevant herein was, an individual residing in the County of San Joaquin, State of

California.

2. Defendant RANDSTAD US, LLC (hereinafter "Randstad") is, and at all times relevant herein was, a Delaware limited liability company doing business in the State of California under the trade names "Randstad," "Randstad General Staffing," and "Randstad Inhouse Services." Randstad General Staffing and Randstad Inhouse Services are trade names and division brands of Randstad US, LLC, not separate legal entities. Randstad is a temporary staffing and employment agency that recruits, hires, and assigns employees to work at client companies throughout California, including in San Joaquin County. Randstad was Plaintiff's employer of record at all times relevant herein. Plaintiff has an established prior employment history with Randstad.

3. Defendant THE RK LOGISTICS GROUP, INC. (hereinafter "RK Logistics") is, and at all times relevant herein was, a California corporation incorporated on April 23, 2004, with its principal place of business at 47020 Kato Road, Fremont, California 94538. RK Logistics is a third-party logistics (3PL) company specializing in semiconductor, electric vehicle, and high-tech logistics, operating multiple warehousing and distribution facilities throughout the San Francisco Bay Area, including facilities in Fremont, Newark, Hayward, and Livermore. RK Logistics was the client company to which Plaintiff was assigned by Randstad and was the entity that established the background screening criteria that resulted in Plaintiff's termination.

4. At all times relevant herein, Defendants operated under a staffing arrangement whereby Randstad, through its Randstad Inhouse Services division, embedded a dedicated site manager within RK Logistics' facility to manage the recruitment, onboarding, and employment of Randstad temporary employees assigned to RK Logistics. Each Defendant was the agent, employee, partner, joint venturer, alter ego, and/or co-conspirator of each other Defendant and was acting within the course and scope of said agency, employment, partnership, joint venture, and/or conspiracy. Each Defendant ratified and approved the acts alleged herein of each other Defendant.

5. The true names and capacities, whether individual, corporate, associate, or otherwise, of DOES 1 through 20, inclusive, are unknown to Plaintiff at this time. Plaintiff will amend this Complaint to allege their true names and capacities when ascertained. Each DOE Defendant is responsible in some manner for the acts, omissions, and damages alleged herein.

## JURISDICTION AND VENUE

6. This Court has jurisdiction over this action pursuant to Article VI, Section 10 of the California Constitution and Code of Civil Procedure section 410.10. The amount in controversy exceeds the jurisdictional minimum of this Court.

7. Venue is proper in this Court pursuant to Code of Civil Procedure sections 395(a) and 395.5 because a substantial part of the events and omissions giving rise to this action occurred in the County of Alameda, where Plaintiff was assigned to work at Defendant RK Logistics' facility in Fremont and where the adverse employment decision was made and implemented.

## FACTUAL ALLEGATIONS

### A. Plaintiff's Application and Recruitment

8. On June 30, 2026, Plaintiff submitted an employment application via the Indeed platform for the position of "Class C Driver - Bobtail (Mon-Fri 2:30pm-11:00pm)" listed by RK Logistics Group, Inc. at its Newark, California facility. At all times relevant herein, Plaintiff held a valid California Class C driver's license. Plaintiff also possessed a temporary Class C license and receipts of procurement issued by the California Department of Motor Vehicles while the DMV processed and mailed the physical license card to Plaintiff. Plaintiff was fully qualified and licensed to operate the bobtail vehicle required for the position.

9. At 8:26 PM on June 30, 2026, RK Logistics transmitted to Plaintiff an automated SMS acknowledgment from telephone number +1 (762) 795-5146 stating: "Thanks for your interest in RK Logistics Group, Inc jobs." This communication confirms that RK Logistics was independently recruiting for CDL driver positions through the Indeed platform and received Plaintiff's application directly.

10. The following morning, July 1, 2026, at 8:08 AM -- approximately 12 hours after Plaintiff's Indeed application -- Randstad recruiter Dishon Bryant contacted Plaintiff via text message from telephone number +1 (609) 901-1636, stating: "Hi Brendan, This is Dishon with Randstad. I'm contacting you regarding the class C driver position you applied for at RK Logistics. Give me a call when you get a chance." This communication establishes the direct nexus between Plaintiff's Indeed application to RK Logistics and Randstad's inhouse staffing pipeline: Randstad's outreach was triggered by, and explicitly referenced, the Indeed application submitted to RK Logistics less than 12 hours earlier.

11. On July 2, 2026, recruiter Dishon Bryant followed up by text message, providing Plaintiff with the identity and direct contact number of the Randstad site manager embedded at the RK Logistics facility: "Site Manger / Danyea Watkins -5106955468." Danyea Watkins (danyea.watkins@randstadusa.com; 510-695-5468) is a Randstad Inhouse Services Site Manager II assigned to the RK Logistics Fremont location -- the same individual who, five days later, emailed Plaintiff requesting completion of a Motor Vehicle Record ("MVR") authorization form, confirming Plaintiff's placement in a CDL commercial driving role.

12. The Bryant-to-Watkins referral chain documents the complete pre-onboarding pipeline: Plaintiff's June 30, 2026 Indeed application to RK Logistics triggered Randstad recruiter outreach within hours; the Randstad recruiter then referred Plaintiff to the embedded RK Logistics site manager; and five days later the site manager completed onboarding paperwork

with the MVR form.

**B. Onboarding and Background Investigation**

13. On July 7, 2026, Defendant Randstad transmitted to Plaintiff a formal notification from noreply@randstadusa.com stating: "Your employee status has changed to Rehired." The notification, signed "Randstad General Staffing," advised Plaintiff regarding weekly paycheck processing and directed Plaintiff to Randstad's self-service portal at workplace.randstad.com to review and confirm personal and payroll information, including name and address, federal and state tax information, and direct deposit account information.

14. That same day, at 2:45 PM, Randstad Inhouse Services Site Manager II Danyea Watkins -- operating inside the RK Logistics Fremont facility -- emailed Plaintiff from danyea.watkins@randstadusa.com requesting completion of an MVR (Motor Vehicle Record) authorization form, confirming that Plaintiff was being placed in a CDL commercial driving role at the RK Logistics facility.

15. At 6:22 PM on July 7, 2026, Defendants caused a background investigation to be submitted through InfoMart LLC, a consumer reporting agency headquartered at 1582 Terrell Mill Road, SE, Marietta, Georgia 30067, for the placement designated as "Randstad App" (Order No. 15780719). The InfoMart report header confirms: Billing Code: "RK LOGISTICS"; Business Unit: "RIS RK Logistics Fremont"; Client Package: "RK Logistics." These designations establish that RK Logistics is the billing client, configured the screening package criteria, and is the decision-making entity for the placement.

**C. The InfoMart Background Report**

16. On July 13, 2026, InfoMart completed and transmitted its background screening report

(Order No. 15780719) to Defendants. The report's purpose was designated as "Pre-Employment." The report's Decision Date is July 13, 2026. The report's overall status was designated as "NEEDS APPROVAL, PER CLIENT CRITERIA" -- confirming that RK Logistics had established predetermined screening criteria that automatically flagged certain results for adverse action review.

17. The InfoMart report is now in Plaintiff's possession. The report conducted criminal history searches across seven jurisdictions, every one of which returned "No Record":

a. Fresno County, California: No Record;

b. San Joaquin County, California: No Record;

c. Santa Clara County, California: No Record;

d. Stanislaus County, California: No Record;

e. Clark County, Nevada: No Record;

f. State of New York: No Record;

g. Sheridan County, Wyoming: No Record.

18. The report's Federal Criminal History search (National Federal) likewise returned "No Record." The OFAC Watch List Search returned "No name match found." The OIG Exclusions List Search returned "not found." The GSA Procurement Exclusion Search returned "not found."

19. The sole item of adverse information identified in the entire 15-page report was a

result from a National Sex Offender Search, conducted as part of a National Criminal Search. The search returned a "Record" for the jurisdiction "County: Sex Offender, State: California," with the name on file listed as "Newanforbi, Brendan Ngehsi." The record contained no case number, no case date, no charge description, no classification, and no disposition. The report's conclusion stated: "Subject is a registered Sex Offender in California."

20. The California Sex Offender Registry is therefore confirmed as the sole basis for the report's "NEEDS APPROVAL" flag and Defendants' subsequent adverse employment action. This is not a claim pled on information and belief -- Plaintiff possesses the actual InfoMart report, which conclusively demonstrates that every criminal search returned clear and that the sex offender registry listing was the only adverse item.

**D. The Pre-Adverse Action Notice**

21. On July 13, 2026, at 1:31 PM, InfoMart transmitted to Plaintiff a "Notice to Consumer for Employment Purposes" pursuant to Section 607(b) of the Fair Credit Reporting Act (15 U.S.C. section 1681e(b)). The notice stated: "The purpose of this message is to notify you that InfoMart, a consumer reporting agency, is reporting the criminal or other public record information that may be adverse about you to: Randstad App." The notice further stated that the "above listed employer has certified that it uses such public record information to determine your eligibility for employment, promotion, reassignment, retention, placement and/or volunteering."

22. The InfoMart notice explicitly identified the information being reported as "criminal or other public record information." The "other public record information" referenced in the notice was sex offender registry information disclosed pursuant to Penal Code section 290.46 -- the only item of adverse information in the entire background report.

23. The notice provided the following contact information: Randstad telephone:

1-888-990-9209; InfoMart dispute address: P.O. Box 2209, Alpharetta, GA 30023.

**E. The Termination**

24. On or about July 15, 2026 -- only two business days after the July 13, 2026 pre-adverse action notice -- Defendant Randstad terminated Plaintiff's employment by telephone.

25. Defendants terminated Plaintiff a mere two business days after InfoMart transmitted the pre-adverse action notice on Monday, July 13, 2026, without affording Plaintiff a reasonable opportunity to review and dispute the contents of the background report. No written adverse action notice was provided to Plaintiff before, concurrent with, or after the termination.

26. The InfoMart report's "NEEDS APPROVAL, PER CLIENT CRITERIA" designation confirms that Defendants had established predetermined screening criteria that automatically flagged sex offender registry results for adverse action. The termination was not the product of an individualized assessment of Plaintiff's qualifications, job duties, or fitness for the position; it was the mechanical application of a categorical exclusion triggered by registry status alone.

**F. The Statutory Prohibition**

27. California Penal Code section 290.46, subdivision (j)(1), provides that "[a] person is authorized to use information disclosed pursuant to this section only to protect a person at risk." Subdivision (j)(2) further provides: "Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to any of the following is prohibited: ... (E) Employment."

28. Subdivision (j)(4)(B) provides that "[a]ny other misuse of information disclosed pursuant to this section is a misdemeanor," punishable by a fine not exceeding twenty-five

thousand dollars ($25,000), imprisonment in a county jail not exceeding six months, or both. These criminal penalties confirm the Legislature's determination that the prohibition on employment-related use of registry information reflects a fundamental public policy of the State of California.

29. Subdivision (j)(5) provides that any use of information disclosed pursuant to Penal Code section 290.46 for purposes relating to employment "shall make the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)."

30. Defendants' termination of Plaintiff based on sex offender registry information violated each of the foregoing provisions. The termination was not undertaken "to protect a person at risk" within the meaning of subdivision (j)(1), and no other provision of law authorized Defendants' use of the registry information for employment purposes. No exception to the statutory prohibition applies to a CDL commercial driving placement.

**G. Damages**

31. As a direct and proximate result of Defendants' unlawful conduct, Plaintiff has suffered and continues to suffer damages including, but not limited to: loss of wages and employment benefits; loss of earning capacity; emotional distress, humiliation, embarrassment, anxiety, and mental anguish; and other consequential damages. The precise amount of Plaintiff's damages will be established at trial.

32. Defendants' conduct was willful, oppressive, and malicious. Defendants maintained a systematic background screening protocol that categorically excluded individuals based on sex

offender registry status in direct contravention of Penal Code section 290.46, subdivision (j)(2)(E). The InfoMart report's "NEEDS APPROVAL, PER CLIENT CRITERIA" designation demonstrates that the exclusion was automated and predetermined, reflecting a deliberate corporate policy of registry-based employment discrimination rather than an isolated or inadvertent decision.

**FIRST CAUSE OF ACTION**

**Violation of California Penal Code Section 290.46, Subdivision (j)(2)(E)**
**(Against All Defendants)**

33. Plaintiff incorporates by reference paragraphs 1 through 32 as though fully set forth herein.

34. Defendants used information disclosed pursuant to California Penal Code section 290.46 -- specifically, sex offender registry information maintained on the California Department of Justice's public sex offender registry -- for purposes relating to Plaintiff's employment, in violation of Penal Code section 290.46, subdivision (j)(2)(E).

35. Defendants' use of the registry information was not authorized under subdivision (j)(1) (protection of a person at risk) or any other provision of law.

36. Pursuant to Penal Code section 290.46, subdivision (j)(5), Plaintiff is entitled to recover: actual damages; an amount not exceeding three times actual damages and not less than $250; attorney's fees; exemplary damages; and/or a civil penalty not exceeding $25,000.

**SECOND CAUSE OF ACTION**

**Wrongful Termination in Violation of Public Policy (Tameny)**

**(Against All Defendants)**

37. Plaintiff incorporates by reference paragraphs 1 through 32 as though fully set forth herein.

38. California Penal Code section 290.46, subdivision (j)(2)(E), establishes a fundamental public policy of the State of California prohibiting the use of sex offender registry information for employment purposes. This public policy is: (a) tethered to a constitutional or statutory provision; (b) designed to benefit the public at large rather than serve a purely private interest; (c) well-established at the time of the termination; and (d) sufficiently substantial and fundamental. (See *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167; *Gantt v. Sentry Insurance* (1992) 1 Cal.4th 1083, 1090.)

39. Defendants terminated Plaintiff's employment in violation of this fundamental public policy by basing the termination on sex offender registry information disclosed pursuant to Penal Code section 290.46.

40. As a direct and proximate result of Defendants' wrongful termination, Plaintiff has suffered and continues to suffer damages including, but not limited to: loss of wages and employment benefits; loss of earning capacity; emotional distress, humiliation, embarrassment, anxiety, and mental anguish; and other consequential damages.

41. Defendants' conduct was willful, oppressive, and malicious, entitling Plaintiff to punitive damages pursuant to Civil Code section 3294.

**THIRD CAUSE OF ACTION**

**Violation of the Investigative Consumer Reporting Agencies Act**

**(Civil Code Section 1786 et seq.)**

**(Against All Defendants)**

42. Plaintiff incorporates by reference paragraphs 1 through 32 as though fully set forth herein.

43. The InfoMart background screening report procured by Defendants constitutes an "investigative consumer report" within the meaning of Civil Code section 1786.2, subdivision (c), in that it was obtained through personal interviews and/or inquiry of public records for the purpose of evaluating Plaintiff's eligibility for employment.

44. Defendants violated the Investigative Consumer Reporting Agencies Act ("ICRAA") in one or more of the following respects:

a. Defendants failed to provide Plaintiff with a clear and conspicuous written disclosure, in a document consisting solely of the disclosure, that an investigative consumer report would be obtained for employment purposes, as required by Civil Code section 1786.16, subdivision (a)(2)(B);

b. Defendants failed to provide Plaintiff with a written adverse action notice, as required by Civil Code section 1786.40, subdivision (b), prior to or concurrent with the termination;

c. Defendants used the investigative consumer report for a purpose not permitted under the ICRAA, specifically by relying on sex offender registry information that California law categorically prohibits employers from using for employment purposes.

45. Pursuant to Civil Code section 1786.50, Plaintiff is entitled to recover: actual damages sustained, or $10,000, whichever is greater, for each violation; punitive damages as the Court may allow; costs of the action; and reasonable attorney's fees as determined by the Court.

## FOURTH CAUSE OF ACTION

**Invasion of Privacy**
**(California Constitution, Article I, Section 1)**
**(Against All Defendants)**

46. Plaintiff incorporates by reference paragraphs 1 through 32 as though fully set forth herein.

47. Article I, Section 1 of the California Constitution provides that all people have an inalienable right to privacy. This right protects against the improper use of personal information for purposes the law has declared off-limits. (See *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1.)

48. Plaintiff had a legally protected privacy interest in his sex offender registry information, which the Legislature has expressly prohibited from use in employment decisions through Penal Code section 290.46, subdivision (j)(2)(E). Plaintiff had a reasonable expectation that this information would not be used for employment purposes, given the categorical statutory prohibition.

49. Defendants' procurement, review, and use of Plaintiff's sex offender registry information to terminate his employment constituted a serious invasion of Plaintiff's constitutionally protected privacy interest. The invasion was not justified by any competing interest, and the means employed were not the least intrusive available.

50. As a direct and proximate result of Defendants' invasion of Plaintiff's privacy, Plaintiff has suffered and continues to suffer damages including, but not limited to: emotional distress, humiliation, embarrassment, anxiety, and mental anguish.

## FIFTH CAUSE OF ACTION

**Negligence Per Se**
**(Evidence Code Section 669)**
**(Against All Defendants)**

51. Plaintiff incorporates by reference paragraphs 1 through 32 as though fully set forth herein.

52. California Penal Code section 290.46, subdivision (j)(2)(E), establishes a standard of conduct prohibiting the use of sex offender registry information for employment purposes. Subdivision (j)(4)(B) makes the misuse of such information a misdemeanor, establishing that the statutory prohibition carries the force of criminal law.

53. Plaintiff is within the class of persons for whose protection the statute was enacted. Employees and job applicants whose names appear on the sex offender registry are the direct and intended beneficiaries of the prohibition on employment-related use of registry information.

54. The harm suffered by Plaintiff -- termination of employment based on registry information -- is the type of harm the statute was designed to prevent.

55. Defendants violated Penal Code section 290.46, subdivision (j)(2)(E), by using sex offender registry information to terminate Plaintiff's employment. Pursuant to Evidence Code

section 669, this violation constitutes negligence per se.

56. As a direct and proximate result of Defendants' negligence per se, Plaintiff has suffered and continues to suffer the damages alleged herein.

**SIXTH CAUSE OF ACTION**

**Unlawful Business Practices**
**(Business and Professions Code Section 17200 et seq.)**
**(Against All Defendants)**

57. Plaintiff incorporates by reference paragraphs 1 through 32 as though fully set forth herein.

58. California Business and Professions Code section 17200 defines "unfair competition" to include "any unlawful, unfair or fraudulent business act or practice." Defendants' use of sex offender registry information to terminate Plaintiff's employment constitutes an "unlawful" business practice because it violates California Penal Code section 290.46, subdivision (j)(2)(E), and the Investigative Consumer Reporting Agencies Act (Civil Code section 1786 et seq.).

59. Defendants' conduct also constitutes an "unfair" business practice because the harm caused by using categorically prohibited information to make employment decisions substantially outweighs any purported utility, and because such conduct violates the policy and spirit of the Legislature's express prohibition.

60. Defendants' unlawful and unfair business practices have caused Plaintiff to suffer injury in fact and loss of money or property, including but not limited to lost wages and employment benefits.

61. Pursuant to Business and Professions Code sections 17203 and 17204, Plaintiff is entitled to restitution of all earnings and benefits lost as a result of Defendants' unlawful and unfair business practices, and to injunctive relief prohibiting Defendants from continuing to engage in the unlawful practices alleged herein.

## PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants, and each of them, as follows:

**On All Causes of Action:**

1. For compensatory damages, including lost wages and employment benefits, according to proof at trial;

2. For general damages for emotional distress, humiliation, embarrassment, anxiety, and mental anguish, according to proof at trial;

**On the First Cause of Action:**

3. For treble actual damages, or statutory minimum damages of $250, whichever is greater, pursuant to Penal Code section 290.46, subdivision (j)(5);

4. For exemplary damages and/or a civil penalty not exceeding $25,000 per violation, pursuant to Penal Code section 290.46, subdivision (j)(5);

**On the Second Cause of Action:**

5. For punitive damages pursuant to Civil Code section 3294;

**On the Third Cause of Action:**

6. For statutory damages of $10,000 per violation, or actual damages, whichever is greater, pursuant to Civil Code section 1786.50;

7. For punitive damages pursuant to Civil Code section 1786.50;

**On the Sixth Cause of Action:**

8. For restitution of all earnings and benefits lost as a result of Defendants' unlawful business practices, pursuant to Business and Professions Code section 17203;

9. For injunctive relief prohibiting Defendants from continuing to use sex offender registry information for employment purposes in violation of Penal Code section 290.46, subdivision (j)(2)(E);

**On All Causes of Action:**

10. For attorney's fees and costs of suit as permitted by law, including Penal Code section 290.46, subdivision (j)(5), and Civil Code section 1786.50;

11. For prejudgment interest as permitted by law;

12. For such other and further relief as this Court deems just and proper.

## DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury on all issues so triable.

Dated: July 20, 2026

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

**VERIFICATION**

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 20, 2026,

at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

# EXHIBIT B

POS-010 Proof of Service of Summons ? Randstad US, LLC (served July 30, 2026)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

| ATTORNEY (Name and Address): SBN: | FOR COURT USE ONLY |
|---|---|
| **Brendan Ngehsi Newanforbi**<br>**1455 Cat Tail Drive**<br>**Stockton, CA 95204**<br><br>EMAIL: **bnn.cdl@gmail.com**<br>ATTORNEY FOR: **In Propria Persona** | **ELECTRONICALLY FILED**<br>Superior Court of California,<br>County of Alameda<br>**08/07/2026 at 11:24:31 AM**<br>By: Maria Alvarado,<br>Deputy Clerk |
| NAME OF COURT, JUDICIAL DISTRICT or BRANCH COURT, IF ANY:<br>**Alameda County Superior Court-1225**<br>**1225 Fallon St**<br>**Oakland, CA 94612** | |
| PLAINTIFF:<br>**Newanforbi**<br>DEFENDANT:<br>**Randstad US, L.L.C., et al** | COURT CASE NO:<br>**26CV199902** |
| **Proof of Service of Summons** | LEVYING OFFICER FILE NO:<br>**2026026857** |

1. At the time of the service I was at least 18 years of age and not a party to this action.
2. I served copies of the:
   f. other *(specify documents):*
   **Complaint for Damages, Notice of Case Assignment, Notice of Case Management Conference, Summons**
3. a. Party Served *(specify name of party as shown on documents served):*
   **Randstad US, LLC, a Delaware limited liability company**
   b. Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a):*
   **Josh Swindell / Authorized Agent**
4. Address where party was served: **c/o CSC - Lawyers Incorporating Service**
   **2710 Gateway Oaks Dr Ste 150N**
   **Sacramento, CA 95833**
5. I served the party:
   a. **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on: 07/30/2026 at: 1:34 PM.
6. the "Notice to the Person Served" (on the summons) was completed as follows:
   Not Applicable
7. **Person who served the papers:**
   a. Name: **F. Conley**
   b. Address: **Sheriff's Civil Bureau, 2969 Prospect Park Drive, Suite 200, Rancho Cordova, CA 95670**
   c. Telephone number: **(916) 875-2665**
   d. **The fee** for service was: **$50.00 (Waived)**
8. **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

**Date:** Friday, July 31, 2026 **by:** J. Conley

Sheriff's Authorized Agent
Jim Cooper


(c) CountySuite Sheriff, Teleosoft, Inc.

Alameda County Superior Court-1225
1225 Fallon St
Oakland, CA 94612

# EXHIBIT C

CIV-100 ? default ENTERED as to Randstad US, LLC (September 16, 2026)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO:
NAME: Brendan Ngehsi Newanforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442 FAX NO.:
E-MAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Pro Per

*FOR COURT USE ONLY*

**FILED**
Superior Court of California
County of Alameda
09/16/2026
Chad Finke, Executive Officer / Clerk of the Court
By: Sue Pesko Deputy
S. Pesko

**SUPERIOR COURT OF CALIFORNIA, COUNTY OF** ALAMEDA
STREET ADDRESS: 1225 Fallon Street
MAILING ADDRESS: 1225 Fallon Street
CITY AND ZIP CODE: Oakland, CA 94612
BRANCH NAME: Rene C. Davidson Courthouse

Plaintiff/Petitioner: Brendan Ngehsi Newanforbi
Defendant/Respondent: Randstad US, LLC, et al.

**REQUEST FOR (Application)** ☑ **Entry of Default** ☐ **Clerk's Judgment** ☐ **Court Judgment**

CASE NUMBER: 26CV199902

**Not for use in actions under the Fair Debt Buying Practices Act (Civ. Code, § 1788.50 et seq.)**; (see form CIV-105)

1. TO THE CLERK: On the complaint or cross-complaint filed
   a. on *(date):* 07/20/2026
   b. by *(name):* Brendan Ngehsi Newanforbi
   c. ☑ Enter default of defendant *(names):*
      RANDSTAD US, LLC, a Delaware limited liability company
   d. ☐ I request a court judgment under Code of Civil Procedure sections 585(b), 585(c), 989, etc., against defendant *(names):*

      *(Testimony required. Apply to the clerk for a hearing date, unless the court will enter a judgment on an affidavit under Code Civ. Proc., § 585(d).)*
   e. ☐ Enter clerk's judgment
      (1) ☐ for restitution of the premises only and issue a writ of execution on the judgment. Code of Civil Procedure section 1174(c) does not apply. (Code Civ. Proc., § 1169.)
         ☐ Include in the judgment all tenants, subtenants, named claimants, and other occupants of the premises. The *Prejudgment Claim of Right to Possession* was served in compliance with Code of Civil Procedure section 415.46.
      (2) ☐ under Code of Civil Procedure section 585(a). *(Complete the declaration under Code Civ. Proc., § 585.5 on the reverse (item 5).)*
      (3) ☐ for default previously entered on *(date):*

2. **Judgment to be entered.**

| | Amount | Credits acknowledged | Balance |
|---|---|---|---|
| a. Demand of complaint | $ | $ | $ |
| b. Statement of damages* | | | |
| (1) Special | $ | $ | $ |
| (2) General | $ | $ | $ |
| c. Interest | $ | $ | $ |
| d. Costs *(see reverse)* | $ | $ | $ |
| e. Attorney fees | $ | $ | $ |
| f. **TOTALS** | $ | $ | $ |

   g. **Daily damages** were demanded in complaint at the rate of: $ per day beginning *(date):*

   *(* Personal injury or wrongful death actions; Code Civ. Proc., § 425.11.)*

3. ☐ *(Check if filed in an unlawful detainer case.)* **Legal document assistant or unlawful detainer assistant** information is on the reverse *(complete item 4).*

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME)

(SIGNATURE OF PLAINTIFF OR ATTORNEY FOR PLAINTIFF)

***FOR COURT USE ONLY***

(1) ☑ Default entered as requested on *(date):* 09/16/2026
(2) ☐ Default NOT entered as requested *(state reason):*

Clerk, by Sue Pesko, Deputy



Form Adopted for Mandatory Use
Judicial Council of California
CIV-100 [Rev. January 1, 2023]

**REQUEST FOR ENTRY OF DEFAULT**
**(Application to Enter Default)**

Code of Civil Procedure, §§ 585–587, 1169
*www.courts.ca.gov*

S. Pesko, Deputy Clerk

Electronically Received 09/16/2026 06:28 AM

| Plaintiff/Petitioner: Brendan Ngehsi Newanforbi<br>Defendant/Respondent: Randstad US, LLC, et al. | CASE NUMBER:<br>26CV199902 |
|---|---|

4. **Legal document assistant or unlawful detainer assistant (Bus. & Prof. Code, § 6400 et seq.).** A legal document assistant or unlawful detainer assistant ☐ did ☑ did **not** for compensation give advice or assistance with this form. If declarant has received **any** help or advice for pay from a legal document assistant or unlawful detainer assistant, state:

   a. Assistant's name:
   b. Street address, city, and zip code:
   c. Telephone no.:
   d. County of registration:
   e. Registration no.:
   f. Expires on *(date):*

5. ☐ **Declaration under Code Civ. Proc., § 585.5** *(for entry of default under Code Civ. Proc., § 585(a)).* This action

   a. ☐ is ☐ is not on a contract or installment sale for goods or services subject to Civ. Code, § 1801 et seq. (Unruh Act).
   b. ☐ is ☐ is not on a conditional sales contract subject to Civ. Code, § 2981 et seq. (Rees-Levering Motor Vehicle Sales and Finance Act).
   c. ☐ is ☐ is not on an obligation for goods, services, loans, or extensions of credit subject to Code Civ. Proc., § 395(b).

6. **Declaration of mailing (Code Civ. Proc., § 587).** A copy of this *Request for Entry of Default* was

   a. ☐ **not mailed** to the following defendants, whose addresses are unknown to plaintiff or plaintiff's attorney *(names):*

   b. ☑ **mailed** first-class, postage prepaid, in a sealed envelope addressed to each defendant's attorney of record or, if none, to each defendant's last known address as follows:

      (1) Mailed on *(date):* September 16, 2026

      (2) To *(specify names and addresses shown on the envelopes):*
      Chadwick L. Williams, Esq., Kabat Chapman & Ozmer LLP
      1150 Spring Street NW, Suite 800, Atlanta, GA 30309
      Randstad US, LLC, c/o CSC - Lawyers Incorporating Service
      2710 Gateway Oaks Drive, Suite 150N, Sacramento, CA 95833

I declare under penalty of perjury under the laws of the State of California that the foregoing items 4, 5, and 6 are true and correct.

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF DECLARANT)

7. **Memorandum of costs** *(required if money judgment requested).* Costs and disbursements are as follows (Code Civ. Proc., § 1033.5):

   a. Clerk's filing fees . . . . . $
   b. Process server's fees . . . . . $
   c. Other *(specify):* $
   d. $
   e. **TOTAL** . . . . . $ _____
   f. ☐ Costs and disbursements are waived.
   g. I am the attorney, agent, or party who claims these costs. To the best of my knowledge and belief this memorandum of costs is correct and these costs were necessarily incurred in this case.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 7 is true and correct.

Date:

_____
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF DECLARANT)

| Plaintiff/Petitioner: Brendan Ngehsi Newanforbi<br>Defendant/Respondent: Randstad US, LLC, et al. | CASE NUMBER:<br>26CV199902 |
|---|---|

8. **Declaration of nonmilitary status** *(required for a judgment).*
No defendant/respondent named in item 1c is in the military service of the United States as defined by either the Servicemembers Civil Relief Act (see 50 U.S.C. § 3911(2)) or California Military and Veterans Code sections 400 and 402(f).

I know that no defendant/respondent named in item 1c is in the U.S. military service because *(check all that apply)*:

a. ☐ the search results that I received from *https://scra.dmdc.osd.mil/* say the defendant/respondent is not in the U.S. military service.
b. ☐ I am in regular communication with the defendant/respondent and know that they are not in the U.S. military service.
c. ☐ I recently contacted the defendant/respondent, and they told me that they are not in the U.S. military service.
d. ☐ I know that the defendant/respondent was discharged from U.S. military service on or about *(date):*
e. ☑ the defendant/respondent is not eligible to serve in the U.S. military because they are:
   ☐ incarcerated ☑ a business entity
f. ☐ other *(specify):*

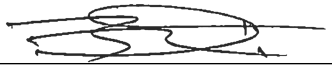
**Note**

- U.S. military status can be checked online at *https://scra.dmdc.osd.mil/*.
- If the defendant/respondent is in the military service, or their military status is unknown, the defendant/respondent is entitled to certain rights and protections under federal and state law before a default judgment can be entered.
- For more information, see *https://selfhelp.courts.ca.gov/military-defaults*.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 8 is true and correct.

Date: 09/16/2026

BRENDAN NGEHSI NEWANFORBI
(TYPE OR PRINT NAME)


(SIGNATURE OF DECLARANT)

# EXHIBIT D

Amended CCP §425.115 Notice ? Randstad US, LLC ($500,000.00)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

**BRENDAN NGEHSI NEWANFORBI**
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**COUNTY OF ALAMEDA**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**RANDSTAD US, LLC, a Delaware limited liability company; THE RK LOGISTICS GROUP, INC., a California corporation; and DOES 1 through 20, inclusive,**<br><br>Defendants. | Case No. 26CV199902<br><br>**AMENDED NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT**<br><br>(Code Civ. Proc. § 425.115; Civ. Code § 3294)<br><br>TO BE SERVED ON:<br>**Randstad**<br><br>Assigned to:<br>Hon. Karin Schwartz, Dept. 20<br>CMC: Dec. 17, 2026, 3:00 p.m.<br>Action Filed: July 20, 2026 |

## AMENDED NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT

**(Code of Civil Procedure section 425.115)**

TO DEFENDANT RANDSTAD US, LLC, a Delaware limited liability company:

**NOTICE TO DEFENDANT:**

Brendan Ngehsi Newanforbi reserves the right to seek $500,000.00 in punitive damages when Brendan Ngehsi Newanforbi seeks a judgment in the suit filed against you.

This Amended Notice is served pursuant to Code of Civil Procedure section 425.115 to preserve Plaintiff's right to seek punitive damages under Civil Code section 3294 in connection with any default judgment, court judgment after default, or other judgment in this action. The amount stated above is the amount of punitive damages Plaintiff presently seeks against you; if you appear in the action, Plaintiff shall not be limited to that amount. (Code Civ. Proc., § 425.115, subds. (b)-(c).)

This Amended Notice supersedes and replaces in full the Notice of Amount of Punitive Damages Sought previously served on you in this action, dated August 4, 2026, which stated the amount of $25,000.00. The amount stated above — $500,000.00 — is the amount of punitive damages Plaintiff now seeks against you, and it replaces the amount stated in that earlier Notice for all purposes. No default has been entered against you as of the date of this Amended Notice, and this Amended Notice is served before any default is taken.

This Amended Notice is directed to you alone. A separate Amended Notice under section 425.115 is being served on each other named defendant against whom Plaintiff seeks punitive damages in this action.

PLEASE TAKE FURTHER NOTICE that a Case Management Conference in this action is set for December 17, 2026, at 3:00 p.m., in Department 20 of the Superior Court of California, County of Alameda, before the Honorable Karin Schwartz.

Dated: August 7, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

# EXHIBIT E

POS-040 ? Amended §425.115 Notice (served August 21, 2026; filed September 9, 2026)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

| ATTORNEY (Name and Address): SBN: | FOR COURT USE ONLY |
|---|---|
| **Brendan Ngehsi Newanforbi**<br>**1455 Cat Tail Drive**<br>**Stockton, CA 95204**<br><br>EMAIL: **bnn.cdl@gmail.com**<br>ATTORNEY FOR: **In Propria Persona** | |
| NAME OF COURT, JUDICIAL DISTRICT or BRANCH COURT, IF ANY:<br>**Alameda County Superior Court-1225**<br>**1225 Fallon St**<br>**Oakland, CA 94612** | |
| PLAINTIFF:<br>**Brendan Ngehsi Newanforbi**<br>DEFENDANT:<br>**Randstad US, L.L.C., a Delaware limited liability company; T** | COURT CASE NO:<br>**26CV199902** |
| **Proof of Service** | LEVYING OFFICER FILE NO:<br>**2026028894** |

1. At the time of the service I was at least 18 years of age and not a party to this action.
2. I served copies of the:
   f. other *(specify documents):*
   **Amended Notice of Amount of Punitive Damages Sought**
3. a. Party Served *(specify name of party as shown on documents served):*
   **Randstad US, LLC, a Delaware limited liability company**
   b. Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a):*
   **Skylar Leih / Authorized Agent**
4. Address where party was served: **c/o CSC - Lawyers Incorporating Service**
   **2710 Gateway Oaks Dr Ste 150N**
   **Sacramento, CA 95833**
5. I served the party:
   a. **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on: 08/21/2026 at: 11:21 AM.
7. **Person who served the papers:**
   a. Name: **F. Conley**
   b. Address: **Sheriff's Civil Bureau, 2969 Prospect Park Drive, Suite 200, Rancho Cordova, CA 95670**
   c. Telephone number: **(916) 875-2665**
   d. **The fee** for service was: **$50.00 (Waived)**
8. **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

**Date:** Tuesday, August 25, 2026 **by:** 

Sheriff's Authorized Agent
Jim Cooper


(c) CountySuite Sheriff, Teleosoft, Inc.

# EXHIBIT F

InfoMart background-check report, Order No. 15780719

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

1582 Terrell Mill Road, SE
Marietta, GA 30067-6048
770.984.2727 • 770.984.8997 fax
www.infomart-usa.com

Brendan N. Ngwa Nforbi
1455 Cat Tail DR
Stockton, CA 95204-1764

## IMPORTANT NOTICE REQUIRED UNDER CALIFORNIA LAW

**INFOMART ("INFOMART") does not guarantee the accuracy or truthfulness of the information in this report as to the subject of the investigation, but only that it is accurately copied from public records. Information generated as a result of identity theft, including evidence of criminal activity, may be inaccurately associated with the consumer who is the subject of this report. Client agrees and certifies that its ordering of and use of this report is in strict compliance with any applicable local, state, and federal laws and regulations.**

**In California, as an investigative consumer reporting agency (ICRA), INFOMART shall provide a consumer seeking to obtain a copy of a report or making a request to review a file, a written notice in simple, plain English and Spanish setting forth the terms and conditions of his or her right to receive all disclosures under California law.**

**TERMS AND CONDITIONS OF CONSUMER'S RIGHT TO RECEIVE DISCLOSURES UNDER CA CIVIL CODE**

Under California Civil Code, you are entitled to find out from INFOMART, an Investigative Consumer Reporting Agency (ICRA), what is in its file about you with proper identification, as follows:

- In person, by visual inspection of your file during normal business hours and on reasonable notice. You also may request a copy of the information in person. INFOMART may not charge you more than the actual copying costs for providing you with a copy of your file.
- A summary of all information contained in the INFOMART file on you that is required to be provided by the California Civil Code will be provided to you via telephone, if you have made a written request, with proper identification, for telephone disclosure, and the toll charge, if any, for the telephone call is prepaid by or charged directly to you.
- By requesting a copy be sent to a specified addressee by certified mail. ICRAs complying with requests for certified mailings shall not be liable for disclosures to third parties caused by mishandling of mail after such mailings leave the ICRAs.

"Proper Identification" includes documents such as a valid driver's license, social security account number, military identification card, and credit cards. Only if you cannot identify yourself with such information may INFOMART require additional information concerning your employment and personal or family history in order to verify your identity. INFOMART will provide trained personnel to explain any information furnished to you and will provide a written explanation of any coded information contained in files maintained on you. This written explanation will be provided whenever a file is provided to you for visual inspection. You may be accompanied by one other person of your choosing, who must furnish reasonable identification. INFOMART may require you to furnish a written statement granting permission to INFOMART, to discuss your file in such person's presence.

All items of information in INFOMART's file shall be available for inspection, except that the sources of information acquired solely for use in preparing an investigative consumer report and actually used for no other purpose will not be disclosed. Upon your request, INFOMART will also disclose the name, address and telephone number of any recipients of an investigative consumer report about you that INFOMART has furnished within the three-year period preceding the request. INFOMART will also disclose the dates, original payees, and amounts of any checks or charges upon which is based any adverse characterization of you, included in the file at the time of the disclosure.

INFOMART may charge you a fee up to $8 for the disclosure and must notify you of any fee prior to the disclosure. INFOMART may not impose a fee for providing you with a revised report after a reinvestigation of disputed information. You have the right to request that an ICRA provide the above information to you once during any 12-month period without charge if you certify in writing that you: (1) are unemployed and intend to apply for employment in the 60-day period beginning on the date the certification is made, (2) are a recipient of public welfare assistance, or (3) have reason to believe that the file on the consumer at the investigative consumer reporting agency contains inaccurate information due to fraud.

## NOTIFICACION IMPORTANTE

**INFOMART no garantiza la exactitud o veracidad de la información en canto al objeto de la investigación, sino que solamente copia la información de los archivos públicos con exactitud. La información generada a raíz del robo de identidad, incluyendo evidencia de actividad criminal, puede ser incorrectamente asociada con el consumidor objeto de este informe. El cliente está de acuerdo y certifica que al ordenar y usar este informe está en estricto cumplimiento de cualesquiera lees o regulaciones locales, estatales y federales que sean aplicables.**

**En California, siendo una "agencia investigadora de información del consumidor" (ICRA, por sus siglas en inglés), INFOMART proveerá, a cualquier consumidor que busque obtener copia de un informe o que solicite revisar los archivos, una notificación sencilla y clara, escrita en inglés y español, detallando los términos y condiciones de su derecho a recibir toda divulgación.**

**TERMINOS Y CONDICIONES DEL DERECHO DEL CONSUMIDOR A RECIBIR DIVULGACIONES BAJO EL CODIGO CIVIL DE CALIFORNIA**

Bajo el Código Civil de California, usted tiene derecho a averiguar, proveyendo identificación apropiada, la información sobre su persona que INFOMART mantiene en sus expedients, de las manera siguientes:

- En persona, mediate inspección visual de su expedient durante horas de trabajo regulares y con aviso previo razonable. Usted también puede pedir copia de esta información en persona. INFOMART le cobrará solamente el cost actual de proveerle una copia de su expediente.
- Un resumen de toda información contenida en el expediente de INFOMART sobre su persona que el Código Civil de California require se suministre le será provisto por teléfono, si used lo ha pedido por escrito, con identificación apropriada, y el cargo, de haber alguno, será por la llamada si la misma es prepagada o cobrada directamente a usted.
- Mediante solicitud de que una copia le sea enviada a un destinatario especifico por medio de correo certificado. Al cumplir con estas solicitudes que requieren el envio de información por correo certificado, las ICRA no serán responsables de divulgaciones a terceros causadas por el manejo inadecuado del correo una vez la correspondencia deje las oficinas de las ICRAs.

"Identificacion Apropiada" incluye documentos tales como una licencia de conducir válida, número de seguro social, tarjeta de identificación militar, y tarjetas de crédito. Solo si used no puede identificarse de esta manera, INFOMART podrá requerir información adicional concerniente a su empleo y su historial personal o familiar para verificar su identidad. INFOMART proveerá personal adiestrado para explicarle cualquier información que le sea suministrada y le proveerá una explicación por escrito de cualquier información codificada contenida dentro de cualesquiera expedients sobre su persona. Esta explicación escrita le será proporcionada siempre que se le prove un expediente para su inspección visual. Usted puede estar acompañado por una persona de su selección, quien también deberá suministrar identificación apropiada. INFOMART le podrá requerir que usted prove una declaración escrita otorgándole permiso a INFOMART para discutir su expedient en presencia de dicha persona.

Todos los detalles de la información en los expedients de INFOMART estarán disponibles para inspección, excepto que las fuentes de información adquiridas solamente para usarse en la preparación de un informe de investigación sobre el consumidor y no utilizados para ningún otro propósito, no serán divulgadas. A solicitud suya, INFOMART también divulgará el nombre, dirección y número de teléfono de cualquier recipient de un informe de investigación del consumidor sobre usted que INFOMART haya suministrado dentro del periodo de tres años inmediatamente anteriores a su solicitud. INFOMART también divulgará las fechas, los beneficiarios originales, y las cantidades de cualquier cheque o cargo sobre los cuales esté basada cualquier caracterización adversa sobre usted, incluida en el expediente al momento de divulgación.

INFOMART le podrá cobra un cargo máximo de $8 por la divulgación y le debe notificar de cualquier cargo antes de la misma. INFOMART no podrá imponer cargo alguno por proveerle un informe revisado luego de la re investigación de información disputada. Usted tine derecho a pedir que una ICRA le provea gratuitamente la información arriba indicada durante cualquier periodo de 12 meses si usted certifica por escrito que : (1) está desempleado e intenta solicitar empleo en un periodo de 60 días a partir de la fecha de la certificación, (2) recibeasistencia pública, o (3) tiene razón para creer que los expedientes en la agencia investigadora de información del consumidor contienen información incorrect dehido a frande.

*Para información en español, visite www.consumerfinance.gov/learnmore o escribe a la Consumer Financial Protection Bureau, 1700 G Street NW, Washington, DC 20552.*

# A Summary of Your Rights Under the Fair Credit Reporting Act

The federal Fair Credit Reporting Act (FCRA) promotes the accuracy, fairness, and privacy of information in the files of consumer reporting agencies. There are many types of consumer reporting agencies, including credit bureaus and specialty agencies (such as agencies that sell information about check writing histories, medical records, and rental history records). Here is a summary of your major rights under FCRA. **For more information, including information about additional rights, go to www.consumerfinance.gov/learnmore or write to: Consumer Financial Protection Bureau, 1700 G Street NW, Washington, DC 20552.**

- **You must be told if information in your file has been used against you.** Anyone who uses a credit report or another type of consumer report to deny your application for credit, insurance, or employment – or to take another adverse action against you – must tell you, and must give you the name, address, and phone number of the agency that provided the information.

- **You have the right to know what is in your file.** You may request and obtain all the information about you in the files of a consumer reporting agency (your "file disclosure"). You will be required to provide proper identification, which may include your Social Security number. In many cases, the disclosure will be free. You are entitled to a free file disclosure if:

    - a person has taken adverse action against you because of information in your credit report;
    - you are the victim of identity theft and place a fraud alert in your file;
    - your file contains inaccurate information as a result of fraud;
    - you are on public assistance;
    - you are unemployed but expect to apply for employment within 60 days.

    In addition, all consumers are entitled to one free disclosure every 12 months upon request from each nationwide credit bureau and from nationwide specialty consumer reporting agencies. See www.consumerfinance.gov/learnmore for additional information.

- **You have the right to ask for a credit score.** Credit scores are numerical summaries of your credit-worthiness based on information from credit bureaus. You may request a credit score from consumer reporting agencies that create scores or distribute scores used in residential real property loans, but you will have to pay for it. In some mortgage transactions, you will receive credit score information for free from the mortgage lender.

- **You have the right to dispute incomplete or inaccurate information.** If you identify information in your file that is incomplete or inaccurate, and report it to the consumer reporting agency, the agency must investigate unless your dispute is frivolous. See www.consumerfinance.gov/learnmore for an explanation of dispute procedures.

- **Consumer reporting agencies must correct or delete inaccurate, incomplete, or unverifiable information.** Inaccurate, incomplete, or unverifiable information must be removed or corrected, usually within 30 days. However, a consumer reporting agency may continue to report information it has verified as accurate.

- **Consumer reporting agencies may not report outdated negative information.** In most cases, a consumer reporting agency may not report negative information that is more than seven years old, or bankruptcies that are more than 10 years old.

- **Access to your file is limited.** A consumer reporting agency may provide information about you only to people with a valid need – usually to consider an application with a creditor, insurer, employer, landlord, or other business. The FCRA specifies those with a valid need for access.

- **You must give your consent for reports to be provided to employers.** A consumer reporting agency may not give out information about you to your employer, or a potential employer, without your written consent given to the employer. Written consent generally is not required in the trucking industry. For more information, go to www.consumerfinance.gov/learnmore.

- **You may limit "prescreened" offers of credit and insurance you get based on information in your credit report.** Unsolicited "prescreened" offers for credit and insurance must include a toll-free phone number you can call if you choose to remove your name and address from the lists these offers are based on. You may opt out with the nationwide credit bureaus at 1-888-567-8688.

- The following FCRA right applies with respect to nationwide consumer reporting agencies**:**

  **CONSUMERS HAVE THE RIGHT TO OBTAIN A SECURITY FREEZE**

  **You have a right to place a "security freeze" on your credit report, which will prohibit a consumer reporting agency from releasing information in your credit report without your express authorization.** The security freeze is designed to prevent credit, loans, and services from being approved in your name without your consent. However, you should be aware that using a security freeze to take control over who gets access to the personal and financial information in your credit report may delay, interfere with, or prohibit the timely approval of any subsequent request or application you make regarding a new loan, credit, mortgage, or any other account involving the extension of credit.

  As an alternative to a security freeze, you have the right to place an initial or extended fraud alert on your credit file at no cost. An initial fraud alert is a 1-year alert that is placed on a consumer's credit file. Upon seeing a fraud alert display on a consumer's credit file, a business is required to take steps to verify the consumer's identity before extending new credit. If you are a victim of identity theft, you are entitled to an extended fraud alert, which is a fraud alert lasting 7 years.

  A security freeze does not apply to a person or entity, or its affiliates, or collection agencies acting on behalf of the person or entity, with which you have an existing account that requests information in your credit report for the purposes of reviewing or collecting the account. Reviewing the account includes activities related to account maintenance, monitoring, credit line increases, and account upgrades and enhancements.

- **You may seek damages from violators.** If a consumer reporting agency, or, in some cases, a user of consumer reports or a furnisher of information to a consumer reporting agency violates the FCRA, you may be able to sue in state or federal court.

- **Identity theft victims and active duty military personnel have additional rights.** For more information, visit www.consumerfinance.gov/learnmore.

**States may enforce the FCRA, and many states have their own consumer reporting laws. In some cases, you may have more rights under state law. For more information, contact your state or local consumer protection agency or your state Attorney General. For information about your federal rights, contact:**

| TYPE OF BUSINESS: | CONTACT: |
|---|---|
| 1.a. Banks, savings associations, and credit unions with total assets of over $10 billion and their affiliates<br><br>b. Such affiliates that are not banks, savings associations, or credit unions also should list, in addition to the CFPB: | a. Consumer Financial Protection Bureau<br>1700 G Street NW<br>Washington, DC 20552<br><br>b. Federal Trade Commission<br>Consumer Response Center<br>600 Pennsylvania Avenue NW<br>Washington, DC 20580<br>(877) 382-4357 |
| 2. To the extent not included in item 1 above:<br>a. National banks, federal savings associations, and federal branches and federal agencies of foreign banks<br><br>b. State member banks, branches and agencies of foreign banks (other than federal branches, federal agencies, and Insured State Branches of Foreign Banks), commercial lending companies owned or controlled by foreign banks, and organizations operating under section 25 or 25A of the Federal Reserve Act.<br><br>c. Nonmember Insured Banks, Insured State Branches of Foreign Banks, and insured state savings associations<br><br>d. Federal Credit Unions | a. Office of the Comptroller of the Currency<br>Customer Assistance Group<br>P.O. Box 53570<br>Houston, TX 77052<br><br>b. Federal Reserve Consumer Help Center<br>P.O. Box 1200<br>Minneapolis, MN 55480<br><br>c. Division of Depositor and Consumer Protection<br>National Center for Consumer and Depositor Assistance<br>Federal Deposit Insurance Corporation<br>1100 Walnut Street, Box #11<br>Kansas City, MO 64106<br><br>d. National Credit Union Administration<br>Office of Consumer Financial Protection<br>1775 Duke Street<br>Alexandria, VA 22314 |
| 3. Air carriers | Assistant General Counsel for Office of Aviation Protection<br>Department of Transportation<br>1200 New Jersey Avenue SE<br>Washington, DC 20590 |
| 4. Creditors Subject to the Surface Transportation Board | Office of Public Assistance, Governmental Affairs, and Compliance<br>Surface Transportation Board<br>395 E Street SW<br>Washington, DC 20423 |
| 5. Creditors Subject to the Packers and Stockyards Act, 1921 | Nearest Packers and Stockyards Division Regional Office |
| 6. Small Business Investment Companies | Associate Administrator, Office of Capital Access<br>United States Small Business Administration<br>409 Third Street SW, Suite 8200<br>Washington, DC 20416 |
| 7. Brokers and Dealers | Securities and Exchange Commission<br>100 F Street NE<br>Washington, DC 20549 |
| 8. Institutions that are members of the Farm Credit System | Farm Credit Administration<br>1501 Farm Credit Drive<br>McLean, VA 22102-5090 |
| 9. Retailers, Finance Companies, and All Other Creditors Not Listed Above | Federal Trade Commission<br>Consumer Response Center<br>600 Pennsylvania Avenue NW<br>Washington, DC 20580<br>(877) 382-4357 |

*Para obtener información en español, visite www.consumerfinance.gov/learnmore o escriba a: Consumer Financial Protection Bureau, 1700 G Street NW, Washington, DC 20552.*

# Un resumen de sus derechos en virtud de la Ley de Informe Justo de Crédito

La Ley de Informe Justo de Crédito (Fair Credit Reporting Act, FCRA, por sus siglas en inglés), una ley federal, fomenta la exactitud, imparcialidad y privacidad de la información en los archivos de las agencias de informes del consumidor. Existen muchos tipos de agencias de informes del consumidor, incluidas las agencias de crédito (credit bureaus) y las agencias especializadas (como las agencias que venden información sobre el historial de extensión de cheques, registros médicos y registros de historial de alquiler). A continuación, se presenta un resumen de sus principales derechos en virtud de la FCRA. **Para obtener más información, incluyendo información sobre derechos adicionales, visite** www.consumerfinance.gov/learnmore **o escriba a: Consumer Financial Protection Bureau, 1700 G Street NW, Washington, DC 20552.**

- **Deben notificarle si la información contenida en su archivo se ha utilizado en su contra.** Todo aquel que utilice un informe de crédito u otro tipo de informe de consumidor para denegar su solicitud de crédito, seguro o empleo, o para emprender otra acción adversa en su contra, debe informarle y debe darle el nombre, la dirección y el número de teléfono de la agencia que proporcionó esa información.

- **Usted tiene derecho a saber lo que contiene su archivo.** Usted puede solicitar y obtener toda la información registrada bajo su nombre en los archivos de una agencia de informe del consumidor (divulgación de su información). Usted deberá proporcionar una prueba de su identidad, que puede incluir su número de Seguro Social. En muchos casos, la divulgación de la información de su archivo será gratuita. Usted tiene derecho a recibir una copia gratuita de su archivo si:

  - Una persona ha emprendido una acción adversa en su contra debido a la información contenida en su informe de crédito.
  - Usted es víctima de un robo de identidad y coloca una alerta de fraude en su archivo.
  - Su archivo contiene información inexacta como resultado de fraude.
  - Usted recibe asistencia pública.
  - Usted está desempleado pero prevé solicitar empleo en un plazo de 60 días.

  Asimismo, todos los consumidores tendrán derecho a recibir una copia gratuita de la información registrada en su archivo cada 12 meses si así se lo solicitan a cada agencia de crédito a nivel nacional y a las agencias especializadas de informe del consumidor a nivel nacional. Para obtener más información, visite www.consumerfinance.gov/learnmore.

- **Usted tiene derecho a pedir su puntuación de crédito.** Las puntuaciones de crédito son resúmenes numéricos de su solvencia crediticia basados en la información de las agencias de crédito. Usted puede solicitar su puntuación de crédito a las agencias de informes del consumidor que generan o distribuyen los puntajes utilizados en préstamos de bienes raíces residenciales, pero tendrá que pagar un cargo. En algunas transacciones hipotecarias, el prestamista le dará información sobre su puntuación de crédito gratuitamente.

- **Usted tiene derecho a impugnar la información incompleta o inexacta.** Si usted identifica información en su archivo que es incompleta o inexacta, y la reporta a la agencia de informes del consumidor, la agencia debe investigar, a menos que su impugnación sea frívola. Para consultar una explicación sobre los procedimientos de impugnación, visite www.consumerfinance.gov/learnmore.

- **Las agencias de informes del consumidor deben corregir o eliminar la información inexacta, incompleta o no verificable.** La información inexacta, incompleta o no verificable debe ser eliminada o corregida, por lo general en un plazo de 30 días. No obstante, si una agencia de informe del consumidor verifica la exactitud de la información, puede seguir reportándola.

- **Las agencias de informes del consumidor no pueden reportar información negativa desactualizada.** En la mayoría de los casos, una agencia de informe del consumidor no puede reportar información negativa ocurrida hace más de siete años, ni quiebras ocurridas hace más de 10 años.

- **El acceso a su archivo es limitado.** Una agencia de informe del consumidor puede proporcionar información sobre usted solamente a aquellas personas que realmente la necesiten — generalmente para considerar una solicitud presentada por usted

ante un acreedor, asegurador, empleador, propietario de una vivienda en alquiler u otro negocio. La FCRA especifica quiénes son las personas que tienen una necesidad válida de acceso.

- **Usted debe otorgar su consentimiento para que se envíen sus informes a los empleadores.** Una agencia de informe del consumidor no puede darle información sobre usted a su empleador, ni a un posible empleador si usted no da su consentimiento por escrito al empleador. Por lo general, el consentimiento escrito no es requerido en la industria del transporte de carga por camión. Para obtener más información, visite www.consumerfinance.gov/learnmore.

- **Usted puede limitar las ofertas "preseleccionadas" de crédito y seguro que recibe y que están basadas en la información de su informe de crédito.** Las ofertas "preseleccionadas " de crédito y seguro no solicitadas deben incluir un número de teléfono gratuito al que usted puede llamar si desea eliminar su nombre y dirección de las listas en las que se basan estas ofertas. Puede solicitar su exclusión voluntaria de estas listas llamando a las agencias de crédito a nivel nacional al 1-888-5-OPTOUT (1-888-567-8688).

- El siguiente derecho, en virtud de la FCRA, se aplica a las agencias de informe del consumidor a nivel nacional:

  **LOS CONSUMIDORES TIENEN EL DERECHO A OBTENER UN CONGELAMIENTO DE SEGURIDAD**

  **Usted tiene derecho a colocar un "congelamiento de seguridad" en su informe de crédito, lo que prohibirá que una agencia de informes del consumidor entregue información sobre su informe de crédito sin su autorización expresa**. El congelamiento de seguridad está diseñado para evitar que créditos, préstamos y servicios se aprueben en su nombre sin su consentimiento. Sin embargo, usted debe saber que colocar un congelamiento de seguridad para controlar el acceso a la información personal y financiera en su informe de crédito podría retrasar, interferir o bloquear la aprobación a tiempo de peticiones o solicitudes posteriores que usted haga con respecto a un nuevo préstamo, crédito, hipoteca o cualquier otra transacción para obtener un crédito.

  Como alternativa a un congelamiento de seguridad, usted tiene derecho a colocar una alerta de fraude inicial o extendida en su archivo de crédito sin costo alguno. Una alerta de fraude inicial es un aviso que se coloca en el archivo de crédito del consumidor por un (1) año. Cuando hay una alerta de fraude en el archivo de crédito del consumidor, la empresa está obligada a tomar medidas para verificar la identidad de dicho consumidor, antes de concederle un crédito. Si usted es una víctima del robo de identidad, usted tiene derecho a colocar una alerta de fraude extendida, que es un aviso de fraude que dura 7 años.

  El congelamiento de seguridad no es aplicable a personas o entidades, ni a las subsidiarias o agencias de cobranza que actúen en nombre de dichas personas o entidades, con las cuales usted ya tiene una cuenta y que solicitan información sobre su informe de crédito con el fin de cobrarle o revisar su cuenta. Revisar una cuenta significa realizar ciertas actividades como el mantenimiento, vigilancia, actualizaciones, mejoras y aumentos a la línea de crédito de dicha cuenta.

- **Usted puede obtener compensación de los infractores.** Si una agencia de informes del consumidor o, en algunos casos, un usuario de informes del consumidor, o un proveedor de información a una agencia de informes del consumidor infringe la FCRA, es posible que usted pueda presentar una demanda ante una corte estatal o federal.

- **Las víctimas del robo de identidad y el personal militar en servicio activo tienen derechos adicionales.** Para obtener más información, visite www.consumerfinance.gov/learnmore.

**Los estados tienen autoridad para hacer cumplir la FCRA, y muchos estados tienen su propia legislación sobre los informes de los consumidores. En algunos casos, usted puede tener más derechos en virtud de la ley estatal. Para obtener más información, comuníquese con su agencia estatal o local de protección del consumidor o con el Fiscal General estatal. Para obtener información sobre sus derechos federales, comuníquese con:**

| TIPO DE NEGOCIO: | COMUNÍQUESE CON: |
|---|---|
| 1.a. Bancos, asociaciones de ahorro y cooperativas de crédito con activos totales de más de $10 mil millones de dólares y sus filiales<br><br>b. Dichas filiales que no sean bancos, asociaciones de ahorro o cooperativas de crédito también deben listar, además del CFPB: | a. Consumer Financial Protection Bureau<br>1700 G Street, NW<br>Washington, DC 20552<br><br>b. Federal Trade Commission<br>Consumer Response Center<br>600 Pennsylvania Avenue, NW<br>Washington, DC 20580<br>(877) 382-4357 |
| 2. En la medida en que no estén incluidos en el punto 1 anterior:<br><br>a. Bancos nacionales, asociaciones de ahorro federales y sucursales federales y agencias federales de bancos extranjeros<br><br>b. Bancos miembros del estado, sucursales y agencias de bancos extranjeros (que no sean sucursales federales, agencias federales, o Sucursales Estatales Aseguradas de Bancos Extranjeros), compañías de préstamos comerciales de propiedad o controladas por bancos extranjeros y las organizaciones que operan bajo la sección 25 o 25A de la Ley de la Reserva Federal (Federal Reserve Act)<br><br>c. Bancos Asegurados No Miembros, Sucursales Estatales Aseguradas de Bancos Extranjeros y asociaciones de ahorros estatales aseguradas<br><br>d. Cooperativas Federales de Crédito | a. Office of the Comptroller of the Currency<br>Customer Assistance Group<br>P.O. Box 53570<br>Houston, TX 77052<br><br>b. Federal Reserve Consumer Help Center<br>P.O. Box. 1200<br>Minneapolis, MN 55480<br><br>c. Division of Depositor and Consumer Protection<br>National Center for Consumer and Depositor Assistance<br>Federal Deposit Insurance Corporation<br>1100 Walnut Street, Box #11<br>Kansas City, MO 64106<br><br>d. National Credit Union Administration<br>Office of Consumer Financial Protection<br>1775 Duke Street<br>Alexandria, VA 22314 |
| 3. Compañías aéreas | Assistant General Counsel for Office of Aviation Protection<br>Department of Transportation<br>1200 New Jersey Avenue SE<br>Washington, DC 20590 |
| 4. Acreedores sujetos a la Junta de Transporte Terrestre (Surface Transportation Board) | Office of Public Assistance, Governmental Affairs, and Compliance<br>Surface Transportation Board<br>395 E Street SW<br>Washington, DC 20423 |
| 5. Acreedores sujetos a la Ley de Empacadores y Corrales Ganaderos de 1921 (Packers and Stockyards Act, 1921) | Oficina Regional de la División de Empacadores y Corrales Ganaderos más cercana |
| 6. Compañías de Inversión en Pequeños Negocios | Associate Administrator, Office of Capital Access<br>United States Small Business Administration<br>409 Third Street SW, Suite 8200<br>Washington, DC 20416 |
| 7. Agentes y Distribuidores | Securities and Exchange Commission<br>100 F Street, NE<br>Washington, DC 20549 |
| 8. Instituciones que son miembros del Sistema de Crédito Agrícola | Farm Credit Administration<br>1501 Farm Credit Drive<br>McLean, VA 22102-5090 |
| 9. Minoristas, Compañías Financieras y todos los demás acreedores no indicados anteriormente | Federal Trade Commission<br>Consumer Response Center<br>600 Pennsylvania Avenue, NW<br>Washington, DC 20580<br>(877) 382-4357 |

**APPLICANT:**

**NAME:**
Brendan N Ngwa Nforbi

**REPORT PROGRESS:**

**CLIENT:**
Randstad App

**PURPOSE:**
Pre-Employment

**ORDER DATE:**
07/07/2026

**REPORTING DATE:**
07/13/2026

**CLIENT DECISION DATE:**
07/13/2026

NEEDS APPROVAL

## GET THE WHOLE STORY

# CONFIDENTIAL REPORT

**California Application / Employees Only:** The report does not guarantee the accuracy or trustfulness of the information generated as a result of identity theft, including evidence of criminal activity, may be inaccurately associated with the consumer who is the subject of the report.

An investigative consumer reporting agency shall provide a consumer seeking to obtain a copy of a report or making a request to review a written notice in simple, plain English and Spanish setting forth the terms and conditions of his or her right to receive all disclosures, as provided in Section 1786.26.

**Solicitud de California / Empleados solamente:** el informe no garantiza la Exactitud a o confianza de la información generada como resultado de la identidad. El robo, incluida la evidencia de actividad criminal, puede estar asociado incorrectamente Con el consumidor que son los subjuegos del informe.

Un consumo investigativo. La agencia de informes proporcionará a un consumidor que busca obtener una copia de un informar o realizar una solicitud para revisar un aviso por escrito en un lenguaje sencillo y senilo y el español que establece los términos y condiciones de su derecho a recibir todas las revelaciones, según lo dispuesto en la Sección 1786.26.

# GET THE WHOLE STORY

## CONFIDENTIAL REPORT

## Randstad App

| | | | | | |
|---|---|---|---|---|---|
| **Name:** | Brendan N Ngwa Nforbi | **Account #:** | 101-122364 | **Order:** | Tuesday, 07/07/2026 |
| **DOB:** | 09/16/XXXX | **Reference #:** | 365c2ee8-160c-465f-b59d-300c615471e1 | **Reporting:** | Monday, 07/13/2026 |
| **SSN:** | XXX-XX-1726 | **Purpose:** | Pre-Employment | **Decision:** | Monday, 07/13/2026 |
| **Alias:** | - | **Billing Code:** | RK LOGISTICS | | |
| | | **Business Unit:** | RIS RK Logistics Fremont | | |
| | | **Order Number:** | 15780719 | | |

**Client Package:** RK Logistics

**NEEDS APPROVAL, PER CLIENT CRITERIA**

| | SERVICE | ORDERED ON | COMPLETED ON | PAGE # |
|---|---|---|---|---|
| ⚠ | Criminal history | Jul 07, 2026 | Jul 13, 2026 | 1 |
| ✓ | Federal criminal history | Jul 07, 2026 | Jul 07, 2026 | 3 |
| ✓ | OFAC Watch List Search | Jul 07, 2026 | Jul 07, 2026 | 3 |
| ✓ | OIG Exclusions List Search | Jul 07, 2026 | Jul 07, 2026 | 3 |
| ✓ | GSA Procurement Exclusion Search | Jul 07, 2026 | Jul 07, 2026 | 4 |
| Conducted | SSN Trace | Jul 07, 2026 | Jul 07, 2026 | N/A |

- Waiting ✓ - Meets criteria - For review ⚠ - Needs approval

## ⚠ CRIMINAL HISTORY

A 7-year criminal record search was conducted on the applicant in the below jurisdictions. Based on the identifying information made available by the applicable jurisdiction, the applicant had the following criminal history:

**Jurisdiction:** County: Fresno State: California

**Result:** No Record

## CRIMINAL HISTORY (CONTINUED)

**Jurisdiction:** County: San Joaquin State: California
**Result:** No Record

**Jurisdiction:** County: Santa Clara State: California
**Result:** No Record

**Jurisdiction:** County: Stanislaus State: California
**Result:** No Record

**Jurisdiction:** County: Clark State: Nevada
**Result:** No Record

**Jurisdiction:** State of New York
**Result:** No Record

**Jurisdiction:** County: Sheridan State: Wyoming
**Result:** No Record

**National Criminal Search**
**Result:** Information Found
**Note:** A National Sex Offender Search was conducted as part of the National Criminal Search.

The following jurisdictions were generated as part of the National Criminal Search:

**Jurisdiction:** County: Sex Offender State: California
**Result:** Record

| | | | |
|---|---|---|---|
| **Case #:** | Unknown | **Name on file:** | Newanforbi, Brendan Ngehsi |
| **Case date:** | Not on file | **DOB on file:** | 09/16/XXXX |
| **Charge:** | | **Classification:** | Unknown |
| **Disposition:** | | **Disposition date:** | |
| **Comments** | Alias Name(s) on File:<br>NEWANFORBI, BRENDAN<br>NGWANFORBI, BRENDAN NGEHSI | | |

## CRIMINAL HISTORY (CONTINUED)

NEWANFORBI, BRENDAN N
NGWA-NFORBI, BRENDAN
Physical description on file: Male, black, 5' 08", 228 lbs, black hair, brown eyes
Subject is a registered Sex Offender in California.

## FEDERAL CRIMINAL HISTORY

**District:** National Federal
**Result:** No Record

## OFAC WATCH LIST SEARCH

**Result:** No name match found.

The USA Patriot Act charged the Department of the Treasury's Office of Foreign Assets Control (OFAC) with the analysis and dissemination of information related to the financial capabilities and resources of international terrorist organizations. It now maintains a list of Specially Designated Nationals and Blocked Persons, which identifies known terrorists, narcotics traffickers, and foreign countries posing a threat to our national security and economy. United States residents are prohibited from doing business with individuals named on this list.

This search was provided to you as a complimentary service.

## OIG EXCLUSIONS LIST SEARCH

**Result:** This applicant's name was not found on the OIG's List of Excluded Individuals/Entities.

Under a Congressional mandate, the Office of Inspector General (OIG) established a program to exclude certain individuals and entities from participating in Federally funded health care programs. The OIG, through this program, maintains a list of all currently excluded parties called the List of Excluded Individuals/Entities.

Bases for exclusion include convictions for program-related fraud and patient abuse, licensing board actions, and default on Health Education Assistance Loans.

For more information, see https://oig.hhs.gov/exclusions/background.asp

## GSA PROCUREMENT EXCLUSION SEARCH

**Result:** This applicant's name was not found on the GSA's Lists of Parties Excluded from Federal Procurement and Nonprocurement Programs.

The Government Services Administration (GSA) is required by the Federal Acquisition Regulation (FAR) to compile and maintain a list of parties excluded throughout the U.S. Government from receiving Federal contracts or certain subcontracts and from certain types of Federal assistance and benefits. InfoMart searches the Reciprocal, Procurement, and Non-Procurement lists for all agencies. For more information, please see https://www.sam.gov

## DISCLAIMER

**Notice to Customer:** This profile is submited with the agreement that all information is held in strict confidence and used for employment/contract purposes/credentialing only. All applicants/consumers must be notified of their rights prior to requesting an InfoMart profile. Applicants/Consumers must sign an Authorization to Release Information as prescribed in FCRA sections 1681b and 1681m.

If the user of this information intends to take adverse action based in whole or in part on the contents of this profile, the user must provide Summary of Consumer Rights as prescribed by the FCRA secion 1681g(c) (3).

**Adverse Action:** An adverse action notification package, which includes this profile and all mandatory consumer right statements, can be printed directly from WebASAP. As an added service, InfoMart can create and mail all of your adverse action notifications. Please contact an InfoMart Customer Service Representative for additional information.

# END OF REPORT

InfoMart

**Everything matters. Let us know what matters to you.**

**CLIENT SUPPORT**
CUSTOMERSERVICE@INFOMART-USA.COM

**APPLICANT SUPPORT**
WWW.APPLICANTADVOCATE.COM

# EXHIBIT G

InfoMart Notice to Consumer for Employment Purposes (July 13, 2026)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Notice to Consumer for Employment Purposes

**InfoMart** <consumercompliance@infomart-usa.com> Mon, Jul 13 at 1:31 PM
Reply-To: <consumercompliance@infomart-usa.com>
To: <bnn.cdl@gmail.com>

InfoMart

Dear Brendan,

The purpose of this message is to notify you that InfoMart, a consumer reporting agency, is reporting the criminal or other public record information that may be adverse about you to:

Randstad App

The above listed employer has certified that it uses such public record information to determine your eligibility for employment, promotion, reassignment, retention, placement and/or volunteering. If you have any questions regarding your report or to receive a copy of your report, please visit https://applicantadvocate.com or contact us at (866)875-7398.

This notice is in reference to a request from the above employer submitted on July 7, 2026 at 6:22pm.

Sincerely,
InfoMart

# EXHIBIT H

Randstad rehire notification (July 7, 2026)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

## Welcome to Randstad

<noreply@randstadusa.com>
To: <bnn.cdl@gmail.com>

Tue, Jul 7 at 2:51 PM

Welcome to Randstad Brendan Ngwa Nforbi!

Your employee status has changed to Rehired.

As part of our relationship, Randstad will issue weekly paychecks as well as make all required and/or authorized deductions during the period that you work for usPrior to receiving your first paycheck, you should navigate to Randstad's self service website by going to www.workplace.randstad.com to review your personal and payroll information and to confirm that the following information is accurate:

- Your name and address
- Your Federal and state tax information
- Your direct deposit account or Instant Pay account information

**Oregon Employees:**

- We provide a list of itemized pay statement codes to help you understand the information on your pay statement.
- This information can be accessed by logging into your self service account at www.workplace.randstad.com and clicking "OR Itemized Pay Codes" under the Payroll section.

**How do I use Randstad Workplace Self Service?**

- Navigate to the website: www.workplace.randstad.com

**For new users to this website, take the following steps:**

- Select the "New User" box on the right side of the webpage
- You will be directed to the Randstad Self Service User Activation Screen
- Continue with registration by entering the information requested (Please note - the email address provided to Randstad will be used to communicate forgotten password, pay notifications, and other changes to you.)
- After the Randstad Self Service User Activation Screen has been completed, select the "next" button to continue

**For returning users to this website, take the following steps:**

- On the home page, enter your username and password and click log in
- If you have forgotten your username and/or password, use the "Forgot User ID/password?" link to access your username and/or reset your password.

If you have any question, contact the Call Center at 877-601-7453.

Best Regards,

Randstad General Staffing

# EXHIBIT I

FW-003 Order on Court Fee Waiver (granted July 20, 2026)

*Newanforbi v. Randstad US, LLC, et al.*
Alameda Super. Ct. No. 26CV199902

# FW-003 Order on Court Fee Waiver (Superior Court)

*Clerk stamps date here when form is filed.*

FILED
Superior Court of California
County of Alameda
07/20/2026
Chad Finke, Executive Officer / Clerk of the Court
By: A. Gospel Deputy

*Fill in court name and street address:*

**Superior Court of California, County of Alameda**

Rene C. Davidson Courthouse
Administration Building, 1221 Oak S
Oakland CA 94612

*Fill in case number and name:*

**Case Number:**
26CV199902

**Case Name:**
NEWANFORBI vs RANDSTAD U.S., LLC, A DEL

**1 Person who asked the court to waive court fees:**

Name: Brendan Ngehsi Newanforbi

Street or mailing address: 1455 Cat Tail Drive

City: Stockton State: CA Zip: 95204

**2 Lawyer, if person in 1 has one** *(name, firm name, address, phone number, e-mail, and State Bar number):*

**3** A request to waive court fees was filed on *(date):* 07/20/2026

☐ The court made a previous fee waiver order in this case on *(date):*

***Read this form carefully. All checked boxes ☑ are court orders.***

**Notice:** The court may order you to answer questions about your finances and later order you to pay back the waived fees. If this happens and you do not pay, the court can make you pay the fees and also charge you collection fees. If there is a change in your financial circumstances during this case that increases your ability to pay fees and costs, you must notify the trial court within five days. (Use form FW-010.) If you win your case, the trial court may order the other side to pay the fees. If you settle your civil case for **$10,000** or more, the trial court will have a lien on the settlement in the amount of the waived fees. The trial court may not dismiss the case until the lien is paid.

**4** After reviewing your: ☑ *Request to Waive Court Fees* ☐ *Request to Waive Additional Court Fees* **the court makes the following orders:**

a. ☑ The court **grant**s your request, as follows:

(1) ☑ **Fee Waiver.** The court grants your request and waives your court fees and costs listed below. *(Cal. Rules of Court, rules 3.55 and 8.818.)* You do not have to pay the court fees for the following:

- Filing papers in superior court
- Making copies and certifying copies
- Sheriff's fee to give notice
- Court fee for phone hearing
- Giving notice and certificates
- Sending papers to another court department
- Reporter's fee for attendance at hearing or trial, if the court is not electronically recording the proceeding and you request that the court provide an official reporter
- Assessment for court investigations under Probate Code section 1513, 1826, or 1851
- Preparing, certifying, copying, and sending the clerk's transcript on appeal
- Holding in trust the deposit for a reporter's transcript on appeal under rule 8.130 or 8.834
- Making a transcript or copy of an official electronic recording under rule 8.835

(2) ☐ **Additional Fee Waiver.** The court grants your request and waives your additional superior court fees and costs that are checked below. *(Cal. Rules of Court, rule 3.56.)* You do not have to pay for the checked items.

☐ Jury fees and expenses
☐ Fees for court-appointed experts
☐ Other *(specify):* _____
☐ Fees for a peace officer to testify in court
☐ Court-appointed interpreter fees for a witness

b. ☐ The court **denies** your fee waiver request because:

**Warning!** If you miss the deadline below, the court cannot process your request for hearing or the court papers you filed with your original request. If the papers were a notice of appeal, the appeal may be dismissed.

(1) Your request is incomplete. You have **10 days** after the clerk gives notice of this Order (see date of service ☐ on next page) to:

- Pay your fees and costs, or
- File a new revised request that includes the incomplete items listed:
  ☐ Below ☐ On Attachment 4b(1)

(2) ☐ The information you provided on the request shows that you are not eligible for the fee waiver you requested for the reasons stated: ☐ Below ☐ On Attachment 4b(2)

The court has enclosed a blank *Request for Hearing About Court Fee Waiver Order (Superior Court)* (form FW-006).You have **10 days** after the clerk gives notice of this order (see date of service below) to:

- Pay your fees and costs in full or the amount listed in c below, or
- Ask for a hearing in order to show the court more information. *(Use form FW-006 to request hearing.)*

c. (1) ☐ The court needs more information to decide whether to grant your request. You must go to court on the date on page 3. The hearing will be about the questions regarding your eligibility that are stated:
☐ Below ☐ On Attachment 4c(1)

(2) ☐ Bring the items of proof to support your request, if reasonably available, that are listed:
☐ Below ☐ On Attachment 4c(2)

**This is a Court Order.**

Your name: Brendan Ngehsi Newanforbi

**Case Number:** 26CV199902

Name and address of court if different from above:

**Hearing Date** → Date: _____ Time: _____

Dept.: _____ Room: _____

**Warning!** If item c(1) is checked, and you do not go to court on your hearing date, the judge will deny your request to waive court fees, and you will have 10 days to pay your fees. If you miss that deadline, the court cannot process the court papers you filed with your request. If the papers were a notice of appeal, the appeal may be dismissed.

Date: 07/20/2026

*Signature of (check one):* ☐ *Judicial Officer* ☑ *Clerk, Deputy*

A. Gospel, Deputy Clerk

## Request for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

## Clerk's Certificate of Service

I certify that I am not involved in this case and *(check one):*

☐ I handed a copy of this Order to the party and attorney, if any, listed in (1) and (2), at the court, on the date below.

☐ This order was mailed first class, postage paid, to the party and attorney, if any, at the addresses listed in (1) and (2), from *(city):* Oakland, California, on the date below.

☐ A certificate of mailing is attached.

Date: 07/20/2026

Chad Finke, Executive Officer / Clerk of the Court

Clerk, by _____, Deputy

Name: A. Gospel

**This is a Court Order.**

**CLERK'S CERTIFICATE OF ELECTRONIC SERVICE ON FEE WAIVER ORDER**

I certify that I am not a party to this cause and that the document: FW-003 - Order on Court Fee Waiver (Superior Court), has been transmitted electronically by the Alameda County Superior Court from Oakland, CA to the electronic service provider that submitted the transaction. The transmission originated from the Alameda County Superior Court on 07/20/2026 at 04:40:00 PM PDT. The electronically transmitted document(s) is in accordance with Rule 2.251 of the California Rules of Court. The list of electronically served recipient(s) are listed below:

Party: Brendan Ngehsi Newanforbi